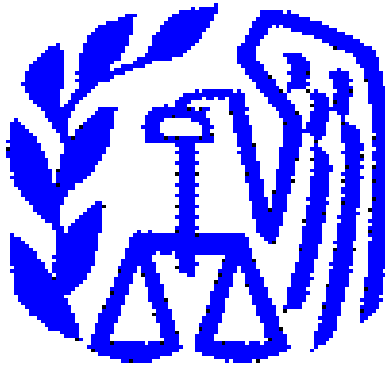


DRAFT PERFORMANCE WORK STATEMENT (PWS)



FACILITIES OPERATIONS / MAINTENANCE

And

CUSTODIAL / PEST CONTROL SERVICES

11/14/2024

TABLE OF CONTENTS

1. INTRODUCTION	10
1.1 Objective	10
1.2 Code or Requirement Conflict	10
1.3 Contractor	10
2. SCOPE OF WORK	10
2.1 Description of Services	10
2.2 Basic Services	11
2.3 Additional Services	11
3. BASIC SERVICES	12
3.1 Facility Operations	12
3.1.1 Building Operations Plan (BOP)	12
3.1.2 Instructions	14
3.1.3 Facility Temperature	14
3.1.4 Equipment Checks (Tours)	14
3.1.5 Reserved	15
3.1.6 Snow Removal, Salting, Ice Abatement, and Pavement Vacuuming Services	15
3.1.6.1 General Requirements	15
3.1.6.2 Specific Requirements	16
3.1.6.3 Snow and Ice Removal	16
3.1.6.4 Salting	16
3.1.6.5 Pavement Vacuuming	16
3.1.6.6 Additional Services	16
3.1.6.7 Annual Snow Removal Plan	16
3.1.6.8 Chemicals	17
3.1.7 Maintain Equipment Rooms and Contractor Spaces	17
3.1.8 Painting and Corrosion Control	17
3.1.9 Read Utility Meters	18
3.1.10 Equipment Condition Report	18
3.1.11 Energy Conservation	18
3.1.12 Lamps and Ballasts	19
3.1.13 Demand Response Programs	19
3.1.14 Water Conservation	19
3.2 Building Systems Water Treatment	19
3.2.1 Water Treatment Program	19
3.2.2 Independent Testing	20
3.2.3 Weekly Water Treatment Tests	23
3.2.4 Chemicals	23
3.2.5 Legionella Water Inspections	23
3.2.5.1 Testing	23
3.2.5.2 Testing Instructions	24
3.3 Service Calls	25

3.3.1 General Service Call Requirements	25
3.3.2 Service Call Reception	26
3.3.2.1 Service Call Reception During Regular Working Hours	26
3.3.2.2 Service Call Reception After Normal HRS	26
3.3.2.2.1 Reception at Continuous On-Site Staffed Locations	26
3.3.3 Service Call Classification, Response and Completion	27
3.3.3.1 Emergency Service Calls	27
3.3.3.2 Hot/Cold Calls	27
3.3.3.3 Urgent Service Calls	27
3.3.3.4 Routine Service Calls	28
3.3.3.5 Utility Time Service Calls (UTSC)	28
3.3.3.6 Service Call Deferrals	29
3.3.4 Service Calls with a Cost Greater than \$3,000	29
3.3.5 Materials, Equipment and Critical Spares	30
3.3.6 Repair Standards	30
3.3.7 Damages Caused by Weather Conditions or Vandalism	30
3.3.8 Technical Assistance	30
3.3.9 Moving Furniture and Equipment	30
3.3.10 Service Call Database	31
3.4 Preventive Maintenance (PM) and Certification	32
3.4.1 Preventive Maintenance (PM)	32
3.4.2 Preventive Maintenance Performance and Scheduling	32
3.4.3 Changes in Equipment Inventory	34
3.4.4 PM Documentation	34
3.4.5 Equipment Identification Numbers (ID)	35
3.4.6 Equipment Certifications	35
3.4.7 Certification Schedules	36
3.4.8 Infrared Testing (Scanning)	36
3.4.9 Control Systems	36
3.4.10 Oil Analysis and Oil Changes	38
3.4.10.1 Periodic Oil Analysis	38
3.4.10.2 Non-Destructive Chiller Tube Analysis	38
3.4.11 Boiler/Pressure Vessel Operation and Inspection Standards	39
3.4.12 Backflow Prevention Devices	39
3.4.13 Domestic Water System	39
3.4.13.1 Reserved	40
3.4.13.2 Reserved	40
3.4.13.3 Repaired, Modified, Serviced or Breached	40
3.4.13.4 Reserved	40
3.4.13.5 Routine Flushing for Childcare, Health Units, and Showers	40
3.5 Personnel Requirements	41
3.5.1 On-Site Project Manager	42
3.5.1.1 On-Site Computerized Maintenance Management System (CMMS) Administrator	42
3.5.1.2 Custodial Personnel	42
3.5.1.2.1 Qualifications of Supervisory Employees	42
3.5.1.2.2 Qualifications of Other Contractor Personnel	42
3.5.2 On-Site Shift Supervisors	43

3.5.3 Electricians	43
3.5.4 Heating Ventilation Air Condition (HVAC) Mechanic	43
3.5.5 Maintenance Mechanic	43
3.5.6 Specialized Equipment Maintenance	44
3.6 On-Site Hours of Operation	44
3.7 Environmental, Health and Safety (EHS) Requirements	45
3.7.1 General	45
3.7.2 Submittals	45
3.7.3 Scheduling and Recordkeeping	46
3.7.4 IRS Environmental Permits	47
3.7.5 EHS Compliance	47
3.7.6 EHS Inspections	47
3.7.7 EHS Training	48
3.7.8 Personal Protective Equipment	48
3.7.9 Occupant Protection	48
3.7.10 Housekeeping	48
3.7.11 Equipment	48
3.7.12 Accidents, Mishaps and Near Misses	49
3.7.13 Fire Protection	49
3.7.14 Electrical Safety	49
3.7.15 Compressed Gas Cylinder Safety	50
3.7.16 Power Industrial Trucks (PIT)	50
3.7.17 Confined Spaces	50
3.7.18 Air Emissions	51
3.7.19 Underground Storage Tanks	51
3.7.20 Spills and Releases	51
3.7.21 Waste Management	52
3.7.22 Hazardous Material (HAZMAT)	52
3.7.23 Refrigerants	53
3.7.23.1 Inventory of Refrigerants	53
3.7.23.2 Reclamation of Refrigerants	53
3.7.23.3 Accountability for Refrigerants	53
3.7.24 Emergency Planning and Community Right-to-Know Act (EPCRA)	54
3.7.25 Hazardous Building Material	54
3.7.25.1 Asbestos	54
3.7.25.2 Lead-Based Paint	55
3.7.25.3 PCBs	55
3.7.25.4 Other Hazardous Building Materials	56
3.7.26 Sustainable Building	57
3.7.27 Green Purchasing	57
3.8 Security	57
3.8.1 Site Access and Clearances	57
3.8.1.1 Full Time and Frequent On-Site Access	57
3.8.1.1.2 Staff-Like Access Definition and Requirements	58
3.8.1.1.3 Eligibility Requirements	59
3.8.1.1.4 Suitability Screening Requirements	60
3.8.1.1.5 Fingerprinting and e-QIP	60

3.8.1.1.6 Submission Requirements	61
3.8.1.1.7 Contractor Employee Training Requirements	61
3.8.1.1.8 Contractor Employee Separation Contract Requirements	61
3.8.1.2 Infrequent and Intermittent Access	62
3.8.2 Badges	62
3.8.3 Facility Security	62
3.9 Phase-In and Phase Out	62
3.9.1 Phase-In Planning/Staffing	62
3.9.2 Existing Deficiencies Inspection	63
3.9.2.1 Inspection Process	63
3.9.2.2 Equip. Disassembly/Reassembly for Inspection Purpose	64
3.9.3 Inspection Documentation	64
3.9.4 Correction of Deficiencies	64
3.9.5 Responsibility for Normal Operations and Maintenance	64
3.9.6 Contract Start	65
3.9.7 Phase-Out	65
3.9.7.1 Contract Close-Out Inspection	65
3.9.7.2 Inspection Documentation	65
3.9.7.3 Deficiency Correction	65
3.10 Quality Control Plan (QCP)	66
3.10.1 Inspection System	66
3.10.2 QPC Personnel	66
3.10.3 Annual Executive Quality Control (QC) Inspection	66
3.10.4 QCP Documentation	66
3.11 Government Quality Assurance Plan (QAP)	67
3.11.1 Quality Assurance Surveillance Plan (QASP)	67
3.11.2 Re-Work for Substandard Work	67
3.11.3 Failure to Perform Scheduled Tasks	67
3.11.4 Degree of Deviation from Requirement and Deduction Calculation	67
3.11.5 Additional Government QAP Actions	68
3.11.6 Government Inspection Timeframes	69
3.12 Contingency Plans	69
3.13 Required Reports and Submittals	69
3.14 Partnering	69
3.15 Warranties	70
3.16 Computerized Maintenance Management Systems (CMMS)	70
3.17 As-Built Drawings	70
3.18 Work Performance, Coordination and Scheduling	70
3.18.1 Routine Work Coordination	71
3.18.2 Facility Outages Coordination	71
3.19 Reserved	71
 4. ADDITIONAL SERVICES	 71
4.1 Types of Additional Services	71
4.1.1 Repair Requirements (Service Call Work) Exceeding \$3,000	71
4.1.2 Correction of Deficiencies Identified During the Phase-In Inspections	72
4.1.3 New Project Work	72

4.1.4 Snow Hauling	72
4.2 Emergency Additional Service	72
4.3 Cost Proposals for Other Than Emergencies	72
4.4 Consequences of Failure to Provide Cost Proposals	74
4.5 Changes to the Scope of Work for Task Orders	74
4.6 Reports	74
 5. GOVERNMENT FURNISHED ITEMS	 74
5.1 Government Furnished Space	74
5.1.1 Keys to Government Facilities	74
5.1.2 Authorized Use and Access to Spaces	75
5.1.3 Technical Publications	75
5.2 Government Furnished Materials (GFM)	75
5.2.1 Material Inventory	75
5.3 Government Furnished Equipment (GFE)	75
5.3.1 Office Furnishing, Minor Tools and Shop Fixtures	76
5.3.2 Use of Government Property	76
5.3.3 Equipment Inventory	76
5.3.4 Computers	76
5.4 Government Provided Services	76
5.4.1 Utilities	77
5.4.2 Fuels	77
5.4.3 Housekeeping Services	77
5.4.4 Grounds Maintenance and Refuse Removal	77
5.4.5 Security and Fire Protection	77
 6. CONTRACTOR PROVIDED ITEMS	 77
6.1 Materials	77
6.2 Communication Equipment	78
6.3 Drawings	78
6.4 Personal Protective Equipment	78
6.5 Uniforms	78
6.6 Warranty of Services	78
 7. CUSTODIAL SERVICE	 78
7.1 General Requirements	78
7.2 The Contractor Shall	79
7.3 Reports/Submittals	81
7.4 Applicable Executive Orders and Regulations	82
7.5 Product Requirements and Green Cleaning	82
7.6 Biobased Product Reporting	83
7.7 Specific Requirements	83
7.7.1 Interior Space	83
7.7.2 Bare Floors	83
7.7.3 Carpet and Rugs	83
7.7.4 Floor Mat, Runners and Umbrella Bags	84
7.8 Restroom	84

7.8.1 Restroom Policing	84
7.8.2 Restroom minor Maintenance	84
7.8.3 Restroom Cleaning Schedule	84
7.8.4 Drinking Fountains	84
7.8.5 Surfaces	85
7.8.6 Walls	85
7.8.7 High Cleaning	85
7.8.8 Trash and Waste Baskets	85
7.8.9 Recyclables	85
7.8.10 Health Unit, Child Care and Fitness Center	85
7.8.11 Stairways	85
7.8.12 Plate Glass	85
7.8.13 Window Washing	85
7.8.14 Blinds and Coverings (Not including Drapes, Curtains, and Unique Coverings)	85
7.8.15 Concessions	85
7.9 Exterior Cleaning	86
7.9.1 Plate Glass	86
7.9.2 Window Washing	86
7.9.3 Canopies	86
7.9.4 Surfaces (signs, chairs/benches, tables, etc.)	86
7.9.5 Dock Areas	86
7.10 Hand Sanitizer dispensers	86
7.11 Art Work	86
7.12 Ash Receptacles and Trash Containers	86
7.13 Excrement Removal (Human, avian, rodent, and service animals)	87
7.14 Service Calls	87
7.14.1 Emergency Service Calls	87
7.14.2 Routine Service Calls	87
7.14.3 Scheduled Routine Service Calls	87
7.14.4 Additional Service Requests	87
7.14.5 Service Call Documentation	88
7.14.6 Enhanced cleanings	88
 8. PEST CONTROL SERVICES	 88
8.1 General Requirements	88
8.2 Specific Requirements	89
8.3 Environmental Compliance	89
8.3.1 Control Methods	89
8.3.2 Certified Applicator	89
8.3.3 Pesticide and Herbicide Use Records	90
8.3.4 Safety	90
8.3.5 Quality	91
 9. DEFINITIONS AND ACRONYMS	 91
 10. REGULATIONS AND REFERENCES	 91

Technical Exhibit Number	Title of Technical Exhibit	File Name
TE-1	General Location and Site Information	TE-1 Facility Location Data
TE-2	Facility Components and Equipment	TE-2 Facility components listing
TE-3	Index of Drawings	TE-3 Index of Drawings
TE-4	IRS PM Guide Cards	TE-4 IRS Preventive guide cards
TE-5	Equipment PM List	TE-5 Equipment list
TE-6	Required Submittals and Reports	TE-6 Contract Deliverables
TE-7	Government Furnished Items to be included in the contract	TE-7 Inventory for Government Furnished Supplies
TE-8	Glossary of Terminology	TE-8-Terminology
TE-9	Applicable Regulations and References	TE-9 Regulations and References
TE-10	Infrared Testing Requirements	TE-10 Infrared Testing
TE-11	Service Call, PM, and ADDITIONAL SERVICES workflow charts	TE-11 CMMS Service Call, PM, IDIQ Flow Chart
TE-12	Certification Requirements	TE-12 Certification Requirements
TE-13	Mural Maintenance	TE-16 Mural Maintenance
TE-14	Biobased Reporting Forms	TE-14 Biobased Reporting Forms
TE-15	QASP	TE-15 O and M QASP
TE-16	Custodial Cleaning Frequencies	TE-16 Custodial PWS Cleaning Frequencies
TE-17	Custodial Cleaning Descriptions	TE-17 Custodial PWS Cleaning Descriptions
TE-18	Elevated Cleaning	TE-18 Elevated Cleaning COVID-19 Event
TE-19	Enhanced Cleaning	TE-19 Enhanced Cleaning SOW

SECTION C: DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

1. INTRODUCTION

1.1 Objective

The objective of this solicitation is to obtain contract services for facility operations and preventive maintenance, together with repair services for buildings, structures, building equipment, pest control, snow removal, and custodial at U.S. Department of Treasury, Internal Revenue Service (IRS) Facility at the following location(s): Andover Service Center (ANSC), 310 Lowell St. Andover, MA 01810.

The overriding objective of this solicitation is to provide the services stated herein with the utmost reliability to minimize any negative impacts on critical building systems which could adversely affect the IRS's mission. Moreover, the objective is to ensure no unscheduled building systems outages on critical building systems which affect IRS operations. The specific location, mission, facility size, building(s) population and other relative data are shown in Technical Exhibit TE-1.

1.2 Code or Requirement Conflict

Throughout this PWS there are references to applicable codes or requirements. These references are for informational purposes to assist in the definition of services to be provided by, or expectations of the Contractor. The Contractor is expected to be knowledgeable of all applicable local, State and Federal requirements associated with the performance of their contract responsibilities together with related industry best practices. In the event of a conflict between the requirements of local, State or Federal requirements, or a conflict between this PWS and the local, State or Federal requirements and/or industry best practices, the most stringent requirement shall apply. The Contractor must comply with the provisions of Executive Order 13834 with respect to the operation of government-owned facilities and vehicles.

1.3 Contractor

Throughout the PWS, the term "Contractor" is used to reference the successful offeror in the performance of the duties as described in this PWS.

2. SCOPE OF WORK

2.1 Description of Services

The Contractor shall provide all management, supervision, labor, materials, supplies, repairs, maintenance, parts, tools and equipment and shall plan, schedule, coordinate and ensure completion of all contract requirements specified herein at Internal Revenue Services (IRS) building(s) at the following location(s): Andover Service Center (ANSC), 310 Lowell St. Andover, MA 01810. Specific facility equipment and building systems included in this contract are shown in Technical Exhibit TE-2 for Facility Components and Equipment (contract covered systems and infrastructure components requiring operations, service calls and service call repairs, etc..) and Technical Exhibit TE-5 depicting Building Equipment PM requirements for the site (equipment requiring PM performed on a scheduled basis). The Contractor shall be fully responsible for the operation, repairs, scheduled preventive maintenance and equipment certifications necessary to

effectively operate and maintain all building equipment and systems as listed in this contract. The Contractor shall also provide additional services building/equipment repair services, new work, snow hauling services, and phase-in deficiency correction.

The Contractor shall be required to operate the facilities covered by this contract during all emergency situations such as fires, spills, accident and rescue operations, strikes, civil disturbances, natural disasters and the like. The contract Project Manager and his designated staff shall become thoroughly familiar with the IRS Occupancy Emergency Plan (OEP) at each site. Participation in the IRS OEP shall be mandatory during the event of an emergency regardless of the time of occurrence. The Contractor shall be responsible to support the OEP during an actual emergency or any associated preparatory drills, by performing specific actions as required by the COR as part of the basic services (fixed price) portion of this contract.

2.2 Basic Services

The basic services portion of this requirement is intended to encompass performance of all services to:

- Operate the facility (described in Paragraphs 3.1, 3.2 and 3.6);
- Perform all service calls and repairs initiated by the Government as service calls (described in Paragraph 3.3);
- Perform Preventive maintenance and equipment certification and infrared testing (described in Paragraph 3.4 and related Technical Exhibits, TE 4, TE 5 and TE 10);
- Provide the services to manage the work at each location (described in Paragraph 3.5) and;
- Perform project planning and proposal development activities and cost estimating of all ADDITIONAL SERVICES work requested by the Government (described in paragraph 4).
- Custodial Services
- Cafeteria Equipment Maintenance

2.3 Additional Services

Additional Services may be ordered as a credit card authorization (< \$3,000) as a means of authorizing additional services. All additional services costing more than \$3,000 will be authorized by a fixed-price and/or time and materials task order. The additional services requirements of this contract will not exceed \$500,000 for each individual task order. All additional services requirements exceeding \$500,000 for each individual task order are excluded from this contract. Additional services are as follows:

That portion of service call repairs that are in excess of \$3,000 up to the maximum order limitation of \$500,000;

- Phase-in deficiency corrections that are in excess of \$500.00 up to the maximum order limitation of \$500,000;
- Snow Hauling up to the maximum order limitation of \$500, 000 and
- New Project Work (Paragraph 4.1.3) up to a maximum order limitation of \$500,000 additional

services requirements up to a maximum order limitation of \$500,000 shall be ordered by issuance of task orders by the Administrative Contracting Officer (CO) in accordance with FAR 52.216-18, ordering and 52.216-19, Order Limitations. Additional services less than \$3,000 may be ordered by issuance of purchase card orders by the Contracting Officer's Representative (COR). The

Contractor shall be responsible to have processes in place to accept ADDITIONAL SERVICES credit card orders up to the \$3,000 threshold by no later than the end of the phase in period.

- **BASIC SERVICES/ADDITIONAL SERVICES**

Work Category	Firm-Fixed Price	Task Order
Facility Operations Services, (Paragraph 3) including but not limited to BOP. (Paragraph 3.1.1), Water treatment (Paragraph 3.2), all service calls less than \$3,000. (3.3)	X	
The first \$3,000 in labor, materials and/or subcontract costs associated with each service call.	X	
Preventive Maintenance, Certification and Infrared services. (Paragraph 3.4)	X	
Phase-In inspection corrections up to \$500 each.	X	
All costs exceeding \$3,000 in labor, material and/or subcontract costs associated with each service call up to a maximum order limitation of \$500,000. (Paragraph 4.1.1)		X
Phase-In Inspection Deficiency Corrections exceeding \$500 up to the maximum order limit (Paragraph 4.1.2)		X
All labor and materials associated with New Project Work from \$0 to a maximum order limitation of \$500,000. (Paragraph 4.1.3)		X

3. BASIC SERVICES

3.1 Facility Operations

The Contractor shall provide all services to operate the facilities as described below.

3.1.1 BUILDING OPERATIONS PLAN (BOP)

The Contractor shall prepare and successfully implement a building operating plan (BOP) for each facility based on the building equipment inventory and the IRS customers' operational needs. The BOP shall address both heating and cooling operations. All energy intense equipment (equipment exceeding 5 horse power) shall be separately identified in the BOP by the equipment identification number (ID #) and an operational

plan (start up and shut down times and days operated) shall be established so all equipment is operated in the most energy efficient manner possible taking into consideration indoor temperatures and outside weather conditions during all operational seasons. The BOP shall be furnished to the COR no later than the end of the phase in period. The government may suspend all contract payments until a satisfactory plan is submitted and approved by the Government. The Contractor shall review the BOP at least annually (within the first 30 days of each option period) or when directed by the Contracting Officer's Representative (COR) and make any necessary revisions to the plan. All revised plans shall be submitted to the COR for written approval prior to implementing the revised BOP. The COR will provide written acceptance or rejection of the plan within 30 days. At a minimum, the BOP shall address the following:

- (1) Standard operating procedures for operating building systems, to include as a minimum:
 - a. Startup and shutdown times and procedures relative to various environmental conditions. These conditions include but are not limited to: typical operation when cooling is required, typical operation when heating is required, operations when typical weather conditions impact heating or cooling (high humidity, extreme cold or hot periods, high winds), typical operation in "off seasons" (where applicable) when item "d" below can be realized.
 - b. Procedures to accommodate tenant overtime utility requests.
 - c. Peak load demand management procedures (if applicable).
 - d. Other operating strategies to maximize efficiency and minimize energy consumption.
 - e. Descriptions of major mechanical equipment and sequences of operations for equipment systems.
 - f. Locations of and requirements associated with accessibility and operations for all major utility shut offs including gas, oil, steam, electric (including UPS) and water.
 - g. Locations of all electric rooms and a narrative of the areas served by each.
- (2) Energy intense equipment (all equipment above 5HP) start up and shut down schedules and operating procedures to achieve sound energy management practices while at the same time providing a building environment in accordance with this solicitation.
- (3) Procedures to achieve and maintain temperatures within the facilities occupied and unoccupied spaces.
- (4) Operations to protect facility, systems and equipment during extreme cold.
- (5) Provide procedures for use of free cooling building equipment to save energy.
- (6) Specific description of how and when equipment operational checks (tours) will be performed.
- (7) Describe procedures and frequency for back up of all automated control systems for building equipment.
- (8) Development of a lighting control plan based on automated building lighting systems and/or manual procedures. A complete plan shall be developed explaining in detail how lighting shall be operated, and costs shall be controlled.
- (9) Describe the procedures for how all outages to building equipment and systems will be requested in advance. All non-emergency, non-PM related outages shall be approved by the COR a minimum of 24 hours in advance.

- (10) Plans and procedures for addressing situations where there is inoperability and impairment of Fire Protection and Life Safety systems, including Fire Watch and impairment procedures (e.g., red tags, etc.).
- (11) Plans and procedures for demand response programs, utility peak pricing tariffs and utility curtailment plans.
- (12) Describe the procedures and frequency of training for the Contractor staff to ensure strict adherence to the BOP.
- (13) Description of watch procedures and documentation to be undertaken during operation of boilers, chillers, and related equipment.

3.1.2 Instructions

The Contractor shall develop specific standard operating procedures for Contractor personnel to implement the accepted BOP. These instructions shall be used by Contractor personnel in daily performance of work. A copy of these instructions shall be provided to the COR annually and shall be made available to other Government personnel upon request.

3.1.3 Facility Temperature

All spaces occupied during facility operating hours shall be maintained at 74 degrees $\pm$ 2 degrees Fahrenheit. Rooms housing Information Technology equipment (Data Centers identified in TE-1) shall be maintained between 64 and 82 degrees Fahrenheit with a relative humidity between 35 – 70%. All HVAC and /or CRAC units will have the same temperature set points. Rooms used for special Printing Operations will be maintained at 72 degrees $\pm$ 1 degree Fahrenheit with a relative humidity of 50% $\pm$ 5%. All HVAC and/or CRAC units will have the same temperature set points. Any temperature deviations shall be approved by the COR in writing.

3.1.4 Equipment Checks (Tours)

The Contractor shall perform equipment checks on all major building equipment at set frequencies (as listed below). Equipment check sheets associated with equipment listed below shall be completed at the time equipment checks are performed. Equipment check sheets (format to be approved by the COR during the phase-in period) shall document all major operating parameters and must indicate the tolerance bands for acceptable performance where available. All findings noted during the checks shall be entered as remarks on the check sheet and a service call work order shall be initiated for any deficiencies that can't be immediately corrected. All completed equipment check sheets shall be provided to the COR within 2 workdays after completion (as required by the COR). A building tour logbook (format to be approved by the COR during the phase-in period) shall be stationed within the particular area and maintained for all mechanical and electrical machine room locations (as required by the COR). The building tour logbook stationed within the particular area shall reflect a minimum 30-day period of performance and shall be notated with the time, date, and mechanics initials when equipment checks are performed in these areas. Completed equipment check sheets and logs beyond the 30-day period shall be maintained in an orderly filing system by the Contractor and remain available for review by the COR throughout the duration of the contract. Thirty days before the expiration of the contract, all contract records (electronic and hard copy) shall be provided to the COR.

Equipment operating logs shall be maintained for major equipment (chiller, boilers, etc. format to be approved by the COR during the phase-in period). Information recorded on the logs shall be adequate to track the operating hours and performance history of the equipment. The past 7 days of logs shall be kept at the equipment in a protective covering. Logs past 8 days old shall be maintained in an orderly filing system by the Contractor and remain available for review by the COR throughout the duration of the contract.

Required Equipment Check Frequencies:

Minimum:

1. DAILY: Major HVAC equipment (when in operation) including boilers, chillers, sump pumps, cooling towers, BAS/EMS, pneumatic control air compressors and air handlers, fire alarm system control panels (fire alarm system control panels shall not have any trouble conditions), steam system reducing and regulating stations, special purpose HVAC for critical functions (for 24 hour operations the checks will be performed once per 8 hour shift).
2. WEEKLY: Distributed HVAC equipment including package units and external condensers, pumps, motors, sewage ejectors, fire pumps, generators, battery systems and uninterruptible power systems (UPS).
3. MONTHLY: Transformers, secondary Electrical rooms. Switchgear/primary electrical equipment rooms and condensate drip pans.

Where central plant equipment (chillers over 300-ton capacity and all boilers), is in operation the Contractor shall perform the following monitoring:

1. Monitor starting, stopping and loading of equipment.
2. Check all operating equipment in the watch area every two (2) hours.
3. Record operating data in appropriate logs or records every two (2) hours.
4. Make minor adjustments at the central control panel (or BAS front end) in response to changing weather/operating conditions.

The Contractor shall make no changes to the established equipment configuration or the programming/operating sequence of control systems for fire alarm, HVAC, mechanical or electrical systems in facilities without the written consent of the COR. Upon completion of any maintenance or repair work, the equipment and its components shall be clean and shall have no missing or damaged parts. The equipment shall operate within the equipment manufacturer's design criteria levels.

3.1.5 Reserved

3.1.6 Snow Removal, Salting, Ice Abatement, and Pavement Vacuuming Services

3.1.6.1 General Requirements

The Contractor shall remove snow and ice from sidewalks, steps, landings, entrances and emergency exits, as necessary to ensure safe access (as determined by the COR) to the ANSC main building complex as part of the fixed price scope of the contract. This includes but, is not limited to, physical or chemical product use to maintain these areas in a safe manner for building occupants. The contractor shall consider environmentally friendly products and submit the SDS for proposed products to the COR and the HQ EHS professional responsible for EHS review.

The smallest amount needed to be effective shall be used. The Contractor will not be evaluated or deducted for delayed non-critical work as a direct result of diverting employees from normal functions for snow removal required during normal operating hours. The COR retains the right to determine what type of services and the duration of diverted services for the removal of snow and ice.

3.1.6.2 Specific Requirements

3.1.6.3 Snow and Ice removal

The Contractor shall respond at the time specified by the COR based on recommendation of on- site contractor/security personnel. The Contractor shall use equipment and techniques that achieve safe roads and parking areas in a timely and cost-effective manner. Removal operations shall continue until directed to stop by the COR. The Contractor shall place snow markers around the perimeter of each site and to identify fire hydrants and similar obstacles by November 15 and remove the markers by May 15. The approximate size of the area to be serviced is 815,000 SF.

3.1.6.4 Salting

The Contractor shall respond at the time specified by the COR based on recommendation of on- site contractor/security personnel. The de-icing compound shall be approved for use on porous asphalt pavement. The use of a sand mixture is allowed and must be approved by the COR. Materials may be stored at an approved location at the Andover site between November 15 and May 15.

3.1.6.5 Pavement Vacuuming

A large area of the parking lot is porous pavement. As such the entire site must be treated as if it were porous. Sweeping is prohibited. The Contractor shall vacuum the parking areas and streets as necessary to maintain a safe, clean and pleasing appearance and no less than quarterly. During the months of December, January, February, and March, the parking lot will be vacuumed monthly.

3.1.6.6 Additional Services

Snow removal and physical or chemical treatment, services of the parking lot, roadways, loading dock areas, etc. will be ordered as additional services work based on tiered pricing for snow removal services as noted in the pricing schedule. Billing will be based on amount of snow and contractor shall provide certified snow totals for Andover, MA for each snow event billed. Tier pricing break down for snow removal should be broken down as follows: (1-3", 3.1-6", 6.1-9", 9.1-12", & 12"+). Ice Treatment – will be paid per application. Contractor will need to sign in/sign out in the visitor log. Street sweeping/vacuuming will be paid per service. Contractor will need sign in/sign out in the visitor log.

3.1.6.7 Annual Snow Removal Plan

The Contractor shall submit a detailed snow removal plan that meets the needs of the IRS. At a minimum, the snow removal plan shall include the following items:

- Coordination measures to ensure appropriate levels of effort for the conditions of the building and site.
- Key Personnel and their responsibilities
- Snow removal event triggers
- Treatment areas requiring de-icing
- Approved materials and chemicals
- Safety plan
- Notification procedures
- Priority areas as identified by IRS
- Identifying any subcontractor support contractor may utilize

3.1.6.7 Chemicals

Chemicals shall be used to reduce environmental and safety hazards due to ice and snow. All chemicals used shall be approved by the COR prior to the first inclement weather event. The Contractor shall ensure there is an adequate supply of chemicals readily available to cover unexpected snow and ice occurrences.

Chemicals such as salt or salt equivalents must be stored in a manner that prevents them from accidental release due to weather (e.g. rain, wind). Chemicals that are prohibited or restricted because of impact to waterways will not be used. The contractor shall maintain and provide to the government copies of SDS sheets for all chemicals used.

3.1.7 Maintain Equipment Rooms and Contractor Spaces

The Contractor shall keep building equipment machine rooms, shops, and contractor office spaces clean and always organized. The contractor shall always maintain a safe working environment. All areas shall be kept free of extraneous materials, swept, mopped and dusted. Any Contractor damage to walls, ceilings, floors, pipes, ducts or exteriors of equipment shall be repaired and the finish shall be returned to match the existing conditions. Operating supplies such as packing, lubricants, rags, cleaners, etc., shall be properly secured in containers and stored in accordance with fire safety requirements outlined in the NFPA and local fire safety laws and regulations, in spaces approved by the COR for storage.

During government building inspections by the COR or Government Maintenance Work Inspectors (MWI's), any unacceptable conditions such as unauthorized storage of hazmat materials, old parts, supplies and/or debris discovered will result in an issuance of a service call at no additional cost to the Government to rectify the situation. Any fines or fees imposed as a result of improper storage of any material, supplies, equipment or safety conditions as a result of contractor actions will be paid by the contractor or it will be deducted from the monthly payment.

3.1.8 Painting and Corrosion Control

Painting included in the basic services portion of this contract is limited to 200 SF per service call at no additional cost to the Government and includes but is not limited to touching up interior and exterior architectural, structural and equipment surfaces such as walls, ceilings, doors, trim, windows, floors, hand railings, metal surfaces, installed building equipment, mechanical equipment, piping and insulation, duct work, machine room walls, ceilings and floors.

Additional painting (over 200 SF per request) may be ordered under additional services ADDITIONAL SERVICES task orders and includes but is not limited to the following interior and exterior surfaces such as ceilings, walls, partitions, doors and trim, windows, floors, foundation, roof, walls, windows, doors and trim as well as structural coatings for surfaces such as mechanical and electrical equipment, structural members, towers, tanks, pipes, utility appurtenances, poles and antennas. ADDITIONAL SERVICES painting may also include performing road and parking lot striping. Prior to all applications of paint, the type and color of the paint to be applied shall be approved by the COR.

3.1.9 Read Utility Meters

The Contractor shall read the gas, steam, electricity, water, fuel oil, and sewage meters monthly and record the readings. The meters shall be read each month as directed by the COR. A Monthly Utility Usage Report of the meter readings shall be provided to the COR as part of the Monthly Progress Report (format to be approved by the COR during the phase-in period). The Contractor will also escort each utility company to read the applicable meter as required by the utility company and/or the COR. The cost to provide this service shall be included in the fixed price portion of the contract.

3.1.10 Equipment Condition Report

The Contractor shall provide immediate notification to the COR for all equipment that is not fully operational. Furthermore, the Contractor shall provide a Daily Equipment Report (format to be approved by the COR during the phase-in period) (sent via E-mail) to the COR by 9:00 am, that identifies any equipment not fully functional and shall detail the equipment deficiency and the proposed estimated time for the equipment to be returned to operational status. The contractor shall time/date stamp (a device that prints the full date and time on the equipment condition report) the report when it is turned over to the Government (unless the report is emailed, then the date/time of the email will serve as the recorded time it was turned over to the Government).

3.1.11 Energy Conservation

The Contractor shall operate equipment and systems as efficiently as possible without compromising service to the tenants. Failure to operate equipment prudently e.g., unnecessarily setting demand peaks, simultaneously heating and cooling, operating equipment when not needed, overriding set points unnecessarily or failing to correct underlying conditions may result in contract payment deductions under the terms of the Quality Assurance Surveillance Plan (QASP). The Contractor is expected to make full use of analytical tools available (e.g., interval meter data, BAS trend data), to diagnose problems and identify operational improvements.

The Contractor, in coordination with the COR and considering life-cycle costs, shall pursue the use of the most energy efficient replacement parts and equipment (Energy Star Rated) items available. The Contractor shall be responsible for all costs associated with the use of high efficiency, energy saving parts. In cases

where high efficiency equipment is currently installed and requires replacement, the replacement part must meet or exceed that standard (the COR shall make the final determination of whether the replacement parts and equipment meet the required standards). Any rebates received from a service utility provider shall be assigned to the Government or applied as a credit against an associated order issued by the Government to the Contractor.

An aggressive Government energy management program is in place. At a minimum, all equipment, systems, architecture, and structure shall be operated and maintained per E.O. 13834, Department of Energy recommendations, best practices, and guidance. Subsequent updates, revisions, etc., shall become part of the contract at no additional cost to the Government.

3.1.12 Lamps and Ballasts

The Contractor shall replace failed lamps, to include appropriate ballasts if required, with the most efficient products available in accordance with existing building standards defined by the COR. In lieu of such standards, lamps shall be replaced with the most efficient products available matching type and **Color Rendering Index (CRI)** for existing facility lighting. The Contractor shall establish and implement a lamping and ballast recycling program for fluorescent tubes and light bulbs in accordance with EPA, state, and GSA regulations.

3.1.13 Demand Response Programs

The Government may participate in any of the available demand response programs or critical peak pricing tariffs administered by utility companies, State agencies or third-party administrators. If the Government participates in such a program and advises the Contractor of the requirements of such program, the Contractor shall cooperate fully in the implementation of the program as part of the fixed price portion of the contract.

The Contractor shall develop a curtailment program in consultation with the Government and subject to Government approval; such plan shall be described in the Building Operating Plan. The Contractor shall implement all Government approved curtailment measures (which might typically include turning off unnecessary lighting, shutting down designated elevators, implementing temperature setback programs, etc.), immediately on notification of a curtailment, in accordance with the plan. Failure to diligently manage systems in accordance with such programs may result in contract payment deductions under the terms of the QASP for excess costs or loss of revenue to the Government.

3.1.14 Water Conservation

The Contractor, in coordination with the COR and considering life-cycle costs, shall pursue the use of the most water efficient replacement parts and equipment items available. Where applicable, the Service Provider shall purchase WaterSense (SM) labeled products. If irrigation services are subcontracted, the contractor shall be certified through a WaterSense labeled program.

3.2 Building Systems Water Treatment

The Contractor shall provide a written detailed water treatment program with their proposal covering all equipment and systems with specific details of how the water treatment will be implemented, maintained,

scheduled, and oversight provided as part of this contract. The program shall include but is not limited to all the requirements of the PWS under 3.2. Existing site-specific equipment shall be addressed in the program (chemical less treatment system, unique controller, filtration systems, etc.).

3.2.1 Water Treatment Program

A. During the phase-in period, the Contractor shall have the water analyzed in each of the applicable building systems named below. The Contractor shall provide a written report during the initial 30 days of the phase-in period which details their findings of the water analysis and establishes an appropriate treatment program for each system.

1. Hot water heating systems
2. Condensate systems
3. Chilled water systems
4. Condenser water systems
5. Decorative Fountains

B. The water treatment program and services supplied by the Contractor shall be specifically formulated for each type of system according to the recommendations of a chemist, laboratory or firm that specializes in the water treatment field. In addition, the Contractor shall be responsible for furnishing and installing all the necessary automated chemical feed equipment required to monitor and automatically feed chemical treatments for all water systems as part of the fixed-price portion of this contract. All automated chemical feed equipment shall be included as part of the complete water treatment program. The program shall be submitted to the COR within the first 60 days of the phase-in period and the COR will provide written approval or rejection of the water treatment program within 30 days of receipt of the program. Acceptable corrosion rates are established in the GSA Public Buildings Service Operations and Maintenance Standards. Molybdenum shall not be used.

3.2.2 Independent Testing

Every water analysis made on these systems, whether initial, regular or follow-up, shall be made by or under the supervision of an independent, registered certified and licensed chemist, laboratory, or firm specializing in the field of water treatment. A written report of findings of all tests shall be submitted to the COR within five (5) calendar days of the analysis. Analyses other than the initial analysis noted above, shall be made on each system as follows:

1. Once each month on a regular, recurring basis (a monthly report shall be included in the monthly progress report).
2. Following any change in the treatment program to ensure proper treatment.

The initial analysis of the HVAC water system(s) shall be submitted to the COR within five (5) calendar days of the analysis. It shall be the responsibility of the Contractor to correct any non-compliant conditions at no cost to the Government as soon as a solution has been reviewed and approved by the CO or designee. Any initial cost that exceeds the \$3,000 threshold shall be a shared liability. Once the parameters are within the established tolerances the Contractor shall be responsible to maintain equipment and chemistry at the Contractor's cost.

The periodic water treatment and testing reports shall be included in the monthly progress reports. All other analysis reports performed to analyze or mitigate non-conforming issues shall be brought to the attention of the CO or designee immediately. The monthly progress reports shall include the following items:

- a) Testing dates, procedures and (in-house and independent) results,
- b) Make up water volumes used,
- c) Chemical amounts and types added to the system(s),
- d) Tolerance and range criteria set forth in the Plan as compared to actual testing results,
- e) Remediation actions taken during the month,
- f) Trending data for a running 12 month period on all measures as they compare to the tolerance and acceptability range parameters set forth in the Plan, and
- g) Any other pertinent data/info to complete a comprehensive profile of the HVAC water system(s).

The Contractor shall compare cooling tower water treatment results with the Chiller Operating Log. Trending and best practices shall be identified and proposed to CO or designee for review and approval prior to implementation in an effort to establish the most efficient systems operations based on conditions.

Table of GSA established HVAC water management criteria.

Open Loop

Chemistry Tests	Frequency of Test	Operating Ranges
Tower Water Conductivity	Auto Blow down: Weekly, Monthly Manual Blowdown: Daily	160-2400 mmHOS (110-1600 ppm)
Makeup Water Conductivity (Hardness)	Auto Blow down: Weekly, Monthly	40-600 mmHOS (30-400 ppm)
pH Test	Daily, Weekly	7.5 to 9.5
Corrosion Monitoring (Coupon Test)	Quarterly (3 months)	Iron: 2 to 5 mils/ year Copper: 0.2 to 0.5 mils/ yr

Total Bacteria Testing	Quarterly (during operating season) and whenever the system has been shut-down for 5 consecutive days. 1 sample per cooling tower cell.	Max: 1000 cfu/ml (colony forming units/ ml)
Chlorides	Weekly, Monthly	Max: 250 ppm as Cl Max: 410 ppm as NaCL
Sulfites	Weekly, Monthly	50-100 ppm SO ₃ 80-160 ppm Na ₂ SO ₃
Corrosion Inhibitor Residual	Auto Chem. Feed: Weekly, Monthly	Defined by Consultant
Oxidizing Biocide Residual	Auto Chem. Feed: Weekly, Monthly	Defined by Consultant

Closed Loop

Chemistry Tests	Frequency of Test	Operating Ranges
pH	Monthly	7.5-9.5
Total Dissolved Solids (TDS) or Conductivity	Quarterly (3 months)	Maximum: 2000 ppm or (2500µS/cm)
Polyphosphates (PO ₄)	Monthly	10- 20 ppm
Sulfites	Monthly	50-100 ppm SO ₃ 80-160 ppm Na ₂ SO ₃
Total Bacteria Testing	Monthly (during operating season) and whenever the system has been shut-down for 5	Max: 1,000 cfu/ml (colony forming units/ ml)

	consecutive days.	
Corrosion Monitoring (Coupon Test)	Bi-Annually (6 months)	Iron: max. 0.5 mils/ year Copper: max. 0.2 mils/ yr
Corrosion Inhibitor Residual	Monthly	Defined By Consultant

3.2.3 Weekly Water Treatment Tests

Trained on-site Contractor personnel or sub contracted personnel shall routinely conduct water treatment and testing of all water systems identified in paragraph 3.2.1 on a weekly basis. A written report of findings of all tests and any adjustments to the system shall be submitted to the COR within two (2) calendar days.

3.2.4 Chemicals

A. The Contractor shall provide all equipment, chemicals and services, including application required to control corrosion, scale, algae and slime in each of the systems named above. The treatment supplied shall be one that has been specifically formulated for each type of system according to the recommendations of a qualified chemist, laboratory or firm experienced in the water treatment field. The treatment(s) shall prevent:

1. Buildup of adherent mineral deposits (scale) on heat transfer surfaces in any of the systems.
2. Algae, slime and bacteria growth.
3. Corrosion

B. Where temperatures, pressures or other operating data indicate that the scale control program is not adequate, the Contractor shall clean the equipment immediately at the contractor's expense, check the treatment for accuracy and thereafter maintain temperatures, pressures and other pertinent factors within limits specified by the manufacturer of the equipment. Slimicides, algacides and biocides or non-chemical methods shall be used to prevent algae, slime and bacteria growth. The Contractor shall warrant that the chemicals or methods as used in the water treatment program:

1. Shall not endanger the health or safety of persons coming into contact with the materials.
2. Shall not harm or damage personal or real property.
3. Shall have no detrimental effect on the metallic, nonmetallic and wood materials in the equipment being treated.
4. Chemicals shall follow current water pollution regulations of any local, State and Federal agency including, but not limited to, the Environmental Protection Agency.

3.2.5 Legionella Water Inspections

The Contractor shall test building system water per Table 1 below, for the presence of Legionella. The testing of the water shall be performed by an independent water-testing firm and a written report shall be provided to the COR with the results of the testing provided to the COR within 15 calendar days after the water samples have been taken.

3.2.5.1 Testing

The Contractor shall test the water in accordance with instructions in 3.2.5.1 and Table 1 below. All equipment associated with the cooling tower shall be checked for proper operation and free of scale, corrosion and other contamination affecting performance of the tower. Testing must include the vibration cutout switch where installed.

3.2.5.2 Testing Instructions

The Contractor must:

- 1) Ensure the sampling subcontractor:
 - a) is qualified and experienced in microbiological sampling methods for Legionella.
 - b) has the capabilities to collect, transport, and analyze samples including “chain of custody” documentation and final reporting.
 - c) as needed, has contacted the testing laboratory before sampling and has received sample collection materials, information on sampling methodology, paperwork, and transport.
 - d) follows sampling directions for specific locations as outlined in the [CDC Legionella Sampling Procedure and Potential Sampling Sites](#).
 - e) follows all instructions from the testing laboratory closely, including the completion of the chain-of-custody.
- 2) Ensure the laboratory that the sampling subcontractor is using is accredited for Legionella analysis according to the international laboratory quality standard ISO 17025:2017 by an accreditation body that is itself accredited according to ISO 17011:2017 (such as AIHA LAP), certified by the CDC Environmental Legionella Isolation Techniques Evaluation program, or as required by specific state requirements (such as the New York State Environmental Laboratory Approval Program for New York State).
- 3) Ensure all test results are attached to the WO submitted in CMMS and have the Cooling Tower/Water Feature samples identified by name and asset number.
- 4) Inform the COR immediately if the results are above the acceptable values outlined below as well as provide a plan for any recommended remedial actions.

TABLE 1

Source	Location	Minimum Number of Samples	Volume of Sample	Frequency	Analytical Method	Acceptable Values
Cooling Towers and Evaporative Condensers (if applicable)	Tower collection basin	1 per cooling tower cell	250 mL unless 1L is required by the lab or state	Monthly (during the operating season)	Culture method (based on ISO 11731:2017 and/or the U.S. CDC methods published in 2005).	<10 CFU/mL
Incoming Cooling Tower Water Supply (if applicable)	Nearest entry point	1 per source	250 mL unless 1L is required by the lab or state	Monthly (concurrent with Cooling Tower)	Culture method (based on ISO 11731:2017 and/or the U.S. CDC methods published in 2005).	<10 CFU/mL
Humidifiers, Misters, Decorative Fountains (if applicable)	Reservoir	1 per system	250 mL unless 1L is required by the lab or state	Monthly (during the operating season)	Culture method (based on ISO 11731:2017 and/or the U.S. CDC methods published in 2005).	<1.0 CFU/mL

3.3 Service Calls

The Contractor shall receive, respond to, complete and document all service calls required by the Government as specified herein. The Contractor shall provide a comprehensive Service Call Program with

their proposal including but not limited to all service call requirements under section 3.3.

3.3.1 General Service Call Requirements

The Government may transmit service call work orders to the Contractor for Service Calls orally, by email, or through an automated work order generation system, IRS Internal Revenue Workflow Optimization, Requests, and Knowledge System (IRWorks). All Government issued service calls shall be received by the contractor, documented in the CMMS database, issued to contractor technicians to accomplish the requested services and closed in a timely manner once all service call requirements have been completed. Service calls are defined as unscheduled building related problems. Examples include, but are not limited to taking measures to respond to and correct building related deficiencies such as malfunctioning HVAC systems resulting in hot/cold complaints, miscellaneous electrical, plumbing, architectural, carpentry and structural system repairs, custodial issues, pest control etc. The Contractor shall respond to and correct these problems as specified herein, including any needed repairs. Service calls may also include technical assistance and other miscellaneous work requirements as required by the COR. Service Calls are brief in scope and do not usually require detailed job planning. The first \$3,000 of labor, materials and subcontract costs of Service Call work is included in the basic services, fixed-price portion of this contract. The Contractor shall receive, perform, and document Service Calls in accordance with the procedures outlined below. In instances where the Contractor identifies additional repair/service call work that is needed in the course of performing other contract work (such as quality control inspections, preventive maintenance or other service calls), the Contractor shall initiate a service call for these services by documenting the required service/repair requirements in the Government furnished Computerized Maintenance Management System (CMMS) and assigning the service call work to contractor technicians.

3.3.2 Service Call Reception

3.3.2.1 Service Call Reception During Regular Working Hours

The Government may transmit service call work orders to the Contractor for Service Calls orally, by email, or through an automated work order generation system (IRWorks) or similar system. The Contractor shall perform Service Call reception Monday through Friday during the hours of 7:30 am to 4:00 pm and classify each call in accordance with the definitions provided below. If the call is classified as Emergency, Hot/Cold or Urgent, the Government will immediately notify the Contractor by phone that an emergency exists. Upon reception of the request the contractor shall immediately (within 10 minutes of reception) create a service call work order in the CMMS. The Government reserves the right to reclassify the type of service call initiated in the CMMS and/or cancel or defer Service Calls initiated by the CONTRACTOR if they are determined by the COR to be classified inappropriately, duplicate work orders (initiated due to identical building deficiencies), or work not meeting the definition of service calls mentioned above. The CONTRACTOR shall document all other types of service calls in the CMMS within a maximum of two (2) hours.

3.3.2.2 Service Call Reception After Normal HRS

The Contractor shall provide the COR with a list of qualified personnel (pager and cell/regular phone numbers) during the phase-in period, to be called when emergency call back services are required. Emergency callback services are included in the base contract/basic services of this contract and thus the Contractor will not be reimbursed for any callback services rendered. The COR, Maintenance Work Inspectors or IRS Security Office personnel will receive the service calls and notify the emergency contact personnel with the nature of the problem and location of the problem. The Contractors personnel shall

respond on-site to the emergency within two hours and shall work the emergency requirement until completion. The contractor shall document all the required service call data in the CMMS within 2 hours after the start of the next normal business day (by 9:30 AM).

3.3.2.2.1 Reception at Continuous On-Site Staffed Locations

The Contractor shall provide the COR with a list of qualified personnel (pager and cell phone numbers) that work shifts after normal government hours during the phase-in period, to be called when emergency service is required after normal government working hours. The COR, Maintenance Work Inspector or Security Office will receive the service calls after normal government hours and issue a verbal service call to the technician working on the shift when the call is received that indicates the nature of the problem, service call priority and location of the problem. The Contractors technician shall document all such verbal requests and accomplish and document the services provided. The contractor shall document all the required service call data in the CMMS within 2 hours after the start of the next normal business day (by 9:30 AM).

3.3.3 Service Call Classification, Response and Completion

The Government and/or Contractor shall classify all Government initiated Service Calls in the CMMS as described below. Service call response times and completion times are shown below and summarized in the associated Table. The Government reserves the right to make the final determination on all service call classifications.

3.3.3.1 Emergency Service Calls

Emergency Service Calls consist of correcting failures on equipment or structures which would immediately threaten personnel, property or the IRS local or national mission and may result in a work stoppage until the support service or repair work is successfully completed. Examples include, broken water pipes, electrical outages, HVAC outages on critical equipment, clogged drains where sewage backup/overflow exists, oil or gas leaks, inoperable pumps, electrical hazards which may cause fire or shock, repairs to critical mechanical systems, roof leaks which creates an unsafe condition. The Contractor shall respond immediately and be on the job site and working within 10 minutes after receipt of an Emergency Service Call except as required in IAW paragraph 3.3.2.2 above. The Contractor shall work continuously without interruption and shall correct or secure the emergency condition before departing the job site. All work on the service call shall be completed in two calendar days or less. However, if the situation is impacting IRS operations or is considered a safety hazard, the Contractor shall work continuously without stopping until the repairs are successfully made and or there is no longer any impact on IRS operations or employees. If the cause of the problem involves building systems or equipment failures that would extend the time required to correct the emergency situation, the Contractor shall leave the ticket open until repairs are completed and mark the work order ticket as an equipment repair (indicate yes in the equipment repair section) and input the associated equipment code on the work order in the CMMS.

3.3.3.2 Hot/Cold Calls

Hot/Cold calls consist of providing services to correct the temperature level at various locations throughout the facilities where Government employees report they are uncomfortable. The Contractor shall respond and

be on the job site and working within 30 minutes after receipt of a Hot/Cold Service Call and shall work continuously until completion of the job. The temperatures shall be maintained in accordance with paragraph 3.1.3 or as directed by the COR. If the cause of the problem involves building systems or equipment failures that would extend the time required to correct the hot/cold situation, the Contractor shall leave the ticket open until repairs are completed and mark the work order ticket as an equipment repair (indicate yes in the equipment repair section) and input the associated equipment code on the work order in the CMMS.

3.3.3.3 Urgent Service Calls

Urgent Service Calls correct failures which do not immediately threaten personnel, property or missions, but which could soon inconvenience and/or affect the health of personnel, lead to property damage, increase the risk of equipment failure or lead to disruptions in IRS operations. The Contractor shall respond and be on the job site and working within 2 working hours after receipt of an Urgent Service Call, when the call is received during regular working hours. Once begun, the work shall be performed to completion and must be completed within 3 calendar days. Urgent Calls shall normally be accomplished during normal Government work hours as mentioned in paragraph 3.6. However, performance may be required outside normal Government work hours as directed by the COR at no additional cost to the Government. If the cause of the problem involves building systems or equipment failures that would extend the time required to correct the urgent situation, the Contractor shall leave the ticket open until repairs are completed and mark the work order ticket as an equipment repair (indicate yes in the equipment repair section) and input the associated equipment code on the work order in the CMMS.

3.3.3.4 Routine Service Calls

Service Calls will be classified as Routine when the work does not qualify as an Emergency or Urgent call as directed by the COR. Examples of Routine Service Calls include: loose baseboard trim, custodial issues dripping faucets, broken floor and ceiling tiles, damaged dry wall, etc. The Contractor shall contact the customer/agency reporting the need for service within two days of receipt of the routine service call. Routine Service Calls shall be completed within 5 calendar days. If the cause of the problem involves building systems or equipment failures that would extend the time required to correct the routine situation, the Contractor shall leave the ticket open until repairs are completed and mark the work order ticket as an equipment repair (indicate yes in the equipment repair section) and input the associated equipment code on the work order in the CMMS.

3.3.3.5 Utility Time Service Calls (UTSC)

The contractor shall provide materials and labor services for completing UTSC to accomplish small miscellaneous jobs at all applicable contract sites as requested by the COR as part of the fixed price portion of the contract.

Utility Time Service Calls are defined as follows:

Miscellaneous facility work;

- The Contractor is responsible for providing all materials and supplies costing less than \$100.00. The Contractor shall also provide all tools of the trade necessary to complete the UTSC,
- Total time to complete a single UTSC request is less than 4 hours,
- Limited to labor categories and Contractor staff presently on-site.

All other supplies or materials costing over \$100.00 per request shall be furnished to the Contractor by the Government.

Examples of UTSC's include but are not limited to the following types of services: miscellaneous labor services, new painting, wallpaper, hanging pictures, banners, bulletin boards, plaques, carpet tile installation, ceiling tile installation, battery operated clock installations, installation of communications cabling, installing door identification cards and office signage, changing directory boards, minor carpentry and electrical related work, custodial, pest, and miscellaneous other building related services as directed by the COR. The Contractor shall provide all tools of the trade, minor supplies and materials costing less than \$100.00 per service request and all associated labor up to 4 hours per call as part of the firm fixed price portion of the contract. The Contractor shall contact the customer within two days of receipt of each utility service call and complete all calls within 5 calendar days.

SERVICE CALL RESPONSE/COMPLETION REQUIREMENTS TABLE

Service Call Classification	Response/Completion
Emergency	Respond within 10 minutes of notification and work to completion or contain the emergency (Complete work within 2 calendar days).
Hot/Cold	Respond within 30 minutes and alleviate the discomfort. (Work to completion, complete work within 2 workdays)
Urgent	Respond within 2 hours of notification during normal work hours. (Complete work within 3 workdays)
Routine	Respond to customer within two workdays of notification received. (Complete work within 5 workdays)
Utility Services	Respond to customer within two workdays of notification received. (Complete work within 5 workdays)

3.3.3.6 Service Call Deferrals

The Contractor shall perform service calls in accordance with the above-mentioned requirements to ensure quality customer service and continuity of operations and/or to return equipment to operational service. If repairs cannot be accomplished within these time frames due to circumstances beyond the Contractors control, a deferral may be requested by the Contractor in the CMMS. The request shall include the following:

1. A thorough explanation for the need to defer the service call in the deferral comments section.

2. The proposed new date work due

The COR will review the request and either grant a deferral or deny the deferral. If the deferral is denied the COR will provide the reasons why and return the deferral request to the contractor via the CMMS. If the deferral is approved the new date for completion will be the estimated date for completion by the contractor. However, under no circumstance can a service call be deferred for more than 15 calendar days. All deferrals will be recorded in the CMMS and be available in the reports section of the system. In any deferral circumstance the Contractor shall continue to address the applicable service call with due diligence until the matter is resolved to the satisfaction of the COR.

3.3.4 Service Calls with a Cost Greater Than \$3,000

If the Contractor responds to a Service Call and believes that the cost of the required work is greater than \$3,000, the COR shall be notified immediately that the cost of the work will exceed \$3,000. No work shall be accomplished prior to the COR's approval. However, an Emergency Service Call shall be abated immediately regardless of the cost provided that the CO is notified immediately or as soon as practicable. The COR shall also be notified concurrently with the CO. The Contractor shall submit an invoice for all emergency work performed within 24 hours after completion of the work. The work will be handled IAW the provisions of additional services work shown in paragraph 4.2 below.

3.3.5 Materials, Equipment and Critical Spares

The Contractor shall maintain enough materials, tools and equipment to support all work requirements identified in this PWS. Lack of availability of supplies, spare parts, tools, or equipment shall not relieve the Contractor from the requirement to complete all required services within the time limits and quality standards specified in this contract.

During the phase in period, the Contractor will inventory and review the existing critical spares for applicability, validity, and current shelf life and shall develop a critical spares, parts, and supplies inventory to be **maintained on site** for the duration of the contract. The proposed inventory shall be submitted in writing to the COR for approval a minimum of 30 days before the end of the phase-in period. The inventory shall include the equipment type and building where the materials will be used and all critical spare parts, supplies, and items required to successfully perform service calls, PM's and repairs to all building systems. Before the contract performance period begins, the Contractor shall obtain the spare parts and supplies for cupboard stock on-site and/or will find supply sources for each major (high dollar item) critical spare to determine if (1) it is readily available for just-in-time (JIT) delivery or (2) it must be purchased for on-site cupboard stock. If JIT delivery is determined to be a suitable option, the Contractor will (a) make such recommendation to the COR, and (b) provide documentation to the COR on the JIT relationship with the supplier and, (c) verify at least quarterly that the supplier can still provide the item just in time.

3.3.6 Repair Standards

The Contractor shall comply with all acceptable industry standards and best practices and shall adhere to all regulations, directives and instructions identified in Paragraph 5 and Technical Exhibit TE-9.

3.3.7 Damages Caused by Weather Conditions or Vandalism

The Contractor shall not be responsible for costs associated with damage to building equipment, systems, or structures which can be proven to be caused by force majeure and/or acts of vandalism. However, if the Contractor employees are responsible for the vandalism or if the contractor fails to provide appropriate protection for building systems or fails to properly secure a work area when the weather event takes place, the Contractor will be responsible for performing all such repairs and all costs associated with the repairs.

3.3.8 Technical Assistance

The Contractor shall provide technical assistance to answer any technical questions related to building systems and equipment covered by this contract. The contractor shall work with other contractors and/or consultants on building related repairs, construction projects, design drawings, reviewing technical drawings and providing feedback, and participating in meetings in support of any project work. The contractor shall start and stop building equipment, lock out and tag out equipment, open and shut valves, drain systems, refill systems, and isolate equipment in support of any project work. The contractor shall also provide advice to Government representatives in all operation, maintenance, repair and building or system upgrades relating to the building(s) covered by this contract. Technical assistance will be requested in the form of a Service Call.

3.3.9 Moving Furniture and Equipment

As part of the firm fixed-price portion of this contract, the Contractor shall move standalone furniture and equipment in the immediate area of the worksite(s) if required to accomplish any services included in this contract (this does not include the disassembling or relocation of systems furniture, except in the cases of emergencies as directed by the COR). In addition, the furniture and/or equipment shall also be relocated back into the original location after work has been completed. All work shall be done with minimum interference to Government personnel and operations as approved by the COR.

3.3.10 Service Call Database

The Contractor shall maintain the Service Call database in the CMMS. This includes receipt of service calls, opening and closing all service calls. All service calls shall be documented (in accordance with items 1-15 below) and closed-out in the CMMS within 2 workdays of the work being completed by the contractor technician (excluding weekends and holidays). The contract technician shall notate the time they first arrived at the site that required service on the hard copy work order ticket. Upon completion of the service call the technician shall time/date stamp (a device that prints the full date and time on the service call ticket) the service call ticket before the ticket has been officially turned in for closing by the contractor's CMMS administrator. A copy of the hard copy work order will be made after the technician has date/time stamped it and turned over to the Government within 24 hours. All original hard copy service call tickets shall be maintained on-site in an orderly filing system (by year, by month, and in work order number) approved by the COR for the duration of the contract by the contractor. The COR shall have 24/7 access to all hard copy service calls records for the duration of the contract and all records shall be turned over to the Government 15 days prior to the contract expiration date.

The completed service call tickets and CMMS documentation shall contain the following information:

1. Who requested the service
2. Location where services were needed.
3. ERC ticket number if applicable
4. Problem Type

5. Work description
6. Priority
7. Time technician arrived at the work site
8. Date work completed
9. Time work completed
10. If it was an equipment repair
11. If an equipment repair, the equipment code #
12. Crafts person(s) that worked on the call
13. Craft person(s) labor hours
14. Craft person(s) **detailed** resolution
15. Parts used to complete the work

The Contractor shall be responsible for maintaining the equipment history database for all service calls and PM performed on all building equipment listed in TE-5. The Contractor shall update all equipment history records in the CMMS database within 2 days after service call repairs, and/or PM activities have been completed.

See TE-11 for a comprehensive service call flow chart depicting how the service call process is to be completed.

3.4 Preventive Maintenance (PM) and Certification

The Contractor shall schedule, perform and document all required PM, equipment certifications and infrared testing. The Contractor shall use the PM scheduling module of the CMMS at each site for managing and documenting all PM program accomplishments. The Contractor shall provide a comprehensive Preventive Maintenance Program with their proposal covering all equipment and systems to be maintained as part of this contract. The program shall include but is not limited to all the requirements of the PWS under 3.4.

3.4.1 Preventive Maintenance (PM)

PM consists primarily of inspection, cleaning, lubrication, adjustment, calibration, corrosion control, touch-up painting and minor part/component replacement (e.g. filters, belts, hoses, fluids, hardware), as required to increase the reliability and efficiency of equipment by minimizing malfunction, breakdown and deterioration of equipment and the identifying of any repairs required to bring the equipment up to the manufacturer's operating standards. The Contractor's PM Plan shall be included in their initial proposal. The Contractor's plan shall include all building equipment and systems requiring a Preventive Maintenance procedure covered under the scope of this contract (See Technical Exhibit #'s 4 and 5). The minimum preventive maintenance standards (minimum PM guide card procedures and frequencies) proposed by the Contractor shall be based on TE-4 or the most recent General Services Administration (GSA)/Public Buildings Service (PBS) Operations and Maintenance Standards or the equipment manufacturer's recommended preventive maintenance procedures and frequencies (whichever are more stringent). The COR shall make the final determination which of the preventive maintenance standards is most stringent. However, the Contractor shall not use the TE-4 for performing inspections, testing and preventive maintenance on fire protection and life safety systems and equipment. The Contractor shall be required to use the specified NFPA Codes and Standards to perform inspections, testing and preventive maintenance of fire protection and life safety systems and equipment. In

addition, the Contractor shall be required to follow the specific testing and inspection frequencies and methods specified in such NFPA Codes and Standards. The Contractor shall record such inspection and testing services on the appropriate NFPA inspection and testing forms.

In the absence of a TE-4 guide card being available for any piece of equipment or system identified in TE-5 or installed during the contract period that requires PM, the Contractor shall develop guide cards based on the manufacturer's documented preventive maintenance standards and be submitted to the COR within 7 days of the discovery or installation (installation date shall be considered the date when the IRS officially receives the equipment) of the new equipment. The manufacturer's published preventive maintenance standards shall be provided to the COR by the Contractor with all Contractor developed guide cards.

See TE-11 for a comprehensive preventative maintenance workflow chart depicting how the process is to be completed.

3.4.2 Preventive Maintenance Performance and Scheduling

A. The Contractor shall perform all PM services required to effectively maintain all building equipment and systems in accordance with the standards mentioned in 3.4.1. The Contractor shall use the PM scheduling module of the CMMS for managing and documenting all PM program accomplishments. During the Phase-in period, the Contractor shall review the existing schedule and equipment inventory loaded in the CMMS. The Contractor shall ensure that the CMMS system equipment inventory for the site accurately reflects all equipment identified in TE-5. The Contractor shall provide a new up-to-date CMMS PM inventory and schedule based on current contract requirements during the initial 30 days of the phase-in period. Once the proposed inventory and schedule is approved in writing by the COR, the Contractor shall input the new schedule into the CMMS during the remaining phase-in period and produce PM work orders in accordance with the new approved schedule. Any proposed changes to the CMMS database during the contract period shall be approved (in writing), in advance by the COR before the Contractor makes any adjustments to the inventory or schedule.

B. The Contractor shall notify the Government COR in advance when any PM work on disassembled equipment (i.e., chillers, boilers, strainers, etc...) is schedule to be reassembled so a PM inspection can be performed by Government inspectors before the equipment is reassembled. Failure to notify the COR in advance of reassembling equipment shall result in the contractor having to disassemble equipment again for Government inspections at no additional costs to the Government. The Government shall perform inspections in a timely manner during normal business hours (Monday through Friday excluding holidays) so as not to delay the contractor in reassembling equipment.

C. It is the Contractor's responsibility to maintain all the building's equipment/systems as listed in TE-2 and TE-5 unless excluded herein. Therefore, in the absence of a specific TE-4 PM guide/checklist being available for certain equipment in these TE's, the Contractor shall perform preventive maintenance in accordance with the manufacturer's recommendations. The Contractor shall develop and submit a written proposed PM guide card to the COR for approval within seven (7) calendar days after the discovery that TE-4 PM guides/checklists are not available for certain equipment to be maintained. These PM guide(s) must be in the same format as the TE-4 guides and include the same type of information regarding a description of work to be done, amount of time required to perform the work and the frequency at which the work must be performed.

D. If the Contractor believes that any TE-4 provided PM guide/checklist included in this contract provides a lower quantity and/or quality of PM than is required by the equipment manufacturer, the Contractor shall develop and submit revised guides cards to the COR for review and approval. These guide(s) must be in the same format as the TE-4 guides and include the same type of information regarding a description of work to be done, amount of time required to perform the work and the frequency at which the work must be performed. Pending disposition of the revised guide(s) by the COR, the Contractor shall diligently complete all required PM as currently specified in this contract. The final determination as to which guide is to be used on a piece of equipment and or system rests solely with the COR.

E. PM Deferrals - If a deferral to the scheduled PM is required; the Contractor will use the deferral section in the CMMS to request the deferral. The Contractor will submit the request a minimum of 5 calendar days before the scheduled PM is due to be completed for consideration of approval by the COR with the following information:

1. A thorough explanation for the need to defer the PM in the deferral comments section.
2. The proposed new date work due.

The COR will provide a response to the request within 3 calendar days via the CMMS. If the deferral is denied the contractor shall perform the work as scheduled. Failure to timely perform the PM could result in a contract deduction being taken via the QASP.

The following criteria apply to PM deferrals:

1. Quarterly and Annual (or less frequent PMs) may be deferred by the COR for up to a maximum of 30 calendar days.
2. Monthly PMs shall not be deferred and must be completed within the month shown in the approved schedule.
3. Weekly PM's shall not be deferred and must be completed within the week shown in the approved schedule.

The Contractor shall maintain enough materials, tools, and equipment to support PM work requirements. Lack of availability of supplies, parts, materials, tools, or equipment shall not relieve the Contractor from the requirement to complete all PM work within the time limits specified in the approved PM schedule.

3.4.3 Changes in Equipment Inventory

The Contractor shall maintain and update the building equipment inventory in the CMMS. Any equipment installed or removed from any building(s) shall be entered into the CMMS database system within 7 calendar days following written permission from the COR to remove or add the equipment. Equipment added as part of a larger renovation project will be added once the equipment has passed commissioning and the IRS has accepted the equipment as functioning according to design criteria. New equipment that is added during the year shall be operated and maintained in accordance with section 3.4.1 above and the BOP (if necessary, the BOP shall be revised to reflect the new equipment and the necessary operating parameters). Maintenance shall be performed even if the new equipment is under warranty. The Contractor shall include a Monthly Inventory Update Report (format to be approved by the COR during the phase-in period) of all equipment added or deleted to TE-5 during the month as part of the Monthly Accomplishments Report identified in TE-

6. The report shall reflect all equipment added or deleted to the CMMS (TE-5) which needs to be officially added or subtracted from the contract.

At the beginning of each new option period, the official TE-5 shall be adjusted as required to ensure accuracy and to affect the basis for an equitable adjustment based on a revised and up-to date TE-5 equipment inventory. Any year during the contract that the PM equipment inventory increases or decreases with more than a 5% deviation from the original TE-5 inventory (based on GSA man-hour standards or RS Mean's man-hours) an equitable adjustment shall be affected during the beginning of the next option period. If inventory additions do not result in the 5% threshold being surpassed, then the Contractor shall maintain the new equipment at no additional cost to the government. Likewise, if deletions in the equipment inventory do not result in the 5% threshold being surpassed, the Government will not receive a reduction in contract cost.

3.4.4 PM Documentation

After PM work is completed by the contractor technician, the Contractor shall document the results of such PM on the PM work order and in the CMMS database. The contractor technician shall date and time stamp (a device that prints the full date and time on the PM ticket) the completed PM work order ticket when work has been completed and before the ticket has been officially turned in to the contractor CMMS administrator for closeout/input into the CMMS. A copy of the hard copy work order will be made after the technician has date/time stamped it and turned over to the Government within 24 hours. All PM tickets shall be maintained up to date in the CMMS system and a hard copy shall be maintained on-site in an orderly filing system (by year, by month, and in work order number) approved by the COR for the duration of the contract. The COR shall always have access to PM records for the duration of the contract and all hard copy records shall be turned over to the Government 15 days prior to the contract expiration date.

Defects or deficiencies identified by the Contractor during PM activities that may result in risk to persons or property shall be reported to the COR immediately. All necessary repairs identified during performance of the PM shall be documented on the PM work order and a repair service call shall be opened in the CMMS to document the requirement and initiate corrective action to complete the necessary repairs. The Contractor shall identify the repair(s) service call number on the completed PM work order. The Contractor shall input actual results of the PM into the CMMS within 2 workdays of completion by the technician. The following information shall be entered on the PM work order form and input into the CMMS by the Contractor:

1. Date of PM work completed.
2. Actual man-hours expended.
3. Craftsperson resolution section. This section shall contain any notes from the craftsperson and any required follow up repair information.
4. Technician Name (CMMS) and Signature (on work ticket)
5. Parts usage information.

See TE-11 for a comprehensive PM workflow chart depicting how the process is to be completed.

3.4.5 Equipment Identification Numbers (ID)

Within the first completed cycle of the initial PM schedule, the Contractor shall update all the ID's in the CMMS and affix a permanent ID label if the equipment ID label is no longer accurate or is missing (the labeling system shall be approved by the COR during the phase-in period). The ID label shall be placed on

each piece of building equipment separately inventoried in TE-5. This work shall be performed at no additional cost to the Government.

3.4.6 Equipment Certifications

Equipment that requires a third-party certification to be obtained is listed below:

1. Fire Alarm/Protection and Sprinkler Systems
2. Weight Handling Equipment
3. Emergency diesel engine driven generators (annual PM and repairs)
4. Uninterruptible Power Supply (UPS) Systems including paralleling switch-gear
5. Building Automation System
6. High/Low Voltage Switchgear (annual PM and repairs)
7. Backflow Preventers
8. Blast doors and air handling equipment for containment area

A separate Certification task shall be entered in the CMMS for each piece of equipment that requires certification. This shall be in addition to the PM task that is entered in the CMMS for the equipment. The contractor must arrange for the certification with the organization that requires it or arrange for the certification to be performed by a third party (a company that is approved to do the certification) if so required. If the equipment fails certification the contractor is required to repair the equipment up to the \$3,000 threshold at no additional cost to the government. If the repair costs exceed the \$3,000 threshold, then an ADDITIONAL SERVICES repair shall be ordered by the government and the contractor will pay the first \$3,000 of the repair. Additional recertification costs after equipment repairs shall be the contractors' responsibility.

3.4.7 Certification Schedules

The Contractor shall schedule equipment certifications with the appropriate party so that certifications always remain current. The Contractor shall identify any equipment requiring certification that is not listed above in Section 3.4.6 and on TE-12 and bring it to the attention of the COR during the initial 30 calendar days of the phase-in period. The COR will review and accept or reject the new requirement within 30 days. Once approved, the Contractor shall input the new certification as a PM task into the CMMS. Failure to perform certifications timely could lead to a deduction being taken on the monthly QASP. Any fines resulting in certifications not being kept current will be borne by the contractor.

3.4.8 Infrared Testing (Scanning)

The Contractor shall enter an Infrared Scanning Task into the CMMS and schedule it at least one month before the annual power outage for the facility (this will allow for any necessary repairs to be performed during the power outage). Annual facility power outages are subject to change so the scanning schedule may

need to be adjusted as well. The schedule for performing the infrared scanning shall be coordinated with the COR on an annual basis. All the equipment requiring a thermographic (infrared) scan is identified in TE-10 along with the required frequency. Scans shall take place when the equipment is at or near peak load capacity. All the equipment requiring a scan during the year shall be completed at the same time. A complete report that includes all scans (photo of each piece of equipment) taken and an analysis of any problem areas and recommended corrections/repairs needed shall be submitted to the COR within 15 calendar days of the scans being completed at the site. All infrared testing shall be accomplished by an independent testing firm not affiliated with the Contractor at no additional cost to the Government. The contractor is required to make all the recommended corrections/repairs up to the \$3,000 threshold at no additional cost to the government (each required correction/repair shall have a separate repair ticket opened in the CMMS). If any individual correction/repair cost exceeds the \$3,000 threshold, then an ADDITIONAL SERVICES repair shall be ordered by the government and the contractor will be responsible for the first \$3,000 of the cost. Upon completion of all repairs a second scan shall be completed under the same load conditions to ensure the repair eradicated the initial problem. If the problem still persists the contractor shall schedule another outage through the COR to make repairs under the same circumstances as described above. All subsequent scans of repaired problems will be performed at no additional cost to the government. All infrared scanning test results shall be recorded in the CMMS with an electronic copy of the entire report uploaded to the original Infrared Scanning Task and any repairs shall have the before and after scan uploaded into the CMMS showing that the problem was corrected. Failure to coordinate and perform the scans timely could lead to a deduction being taken on the monthly QASP.

3.4.9 Control Systems

All control systems shall be maintained as designed. The Contractor is responsible for all system hardware including but not limited to the following systems; elevator controls, Fire Alarm, and Building Automation System (BAS)/HVAC controls. The Contractor is responsible for keeping software functioning and for reloading software in computers or controllers as necessary. The Contractor is responsible for making set point adjustments as necessary and appropriate. The Contractor is not responsible for writing or modifying control programs, other than reloading programs and making operator-level changes such as set point adjustments. The Contractor is not responsible for upgrading software; however, the Government may issue an ADDITIONAL SERVICES order for the Contractor to upgrade any software or hardware required to ensure continuity of operations. In addition, the Contractor is responsible for maintaining a backup copy of all automated building equipment software for the purpose of reloading software as required ensuring systems continue to function IAW manufacturer's standards.

The Government may upgrade or change Control System software and hardware or reprogram control systems during the performance period of the contract. If the Government provides operator level training and operator level documentation for the Contractor's use, the Contractor shall not claim additional payment for changing to the new or upgraded software and hardware or control programs unless it results in additions or subtractions of maintenance requirements that meet those outlined in section 3.4.3 above.

The Contractor shall not modify sequences of operation or control programs without prior written approval from the COR.

The Contractor is responsible for notifying the Government if a sequence of operations or its implementation as a control program is not producing the desired results or is resulting in unnecessary energy use. The

Contractor is responsible for retaining the manufacturer, manufacturer certified service firm, or representatives/specialists who are factory-trained certified technicians to accomplish all scheduled and unscheduled preventive maintenance and repair services on these systems. If the Contractor does not employ a manufacturer-trained and certified BAS technician on-site, the Contractor must enter into a subcontract, which shall include at a minimum, weekly scheduled on-site support visits (8 hours/week) to perform schedule maintenance (known as ongoing commissioning) and repairs (not merely support on a contingency basis), with an individual/firm having these qualifications and skills. The Contractor shall develop a PM schedule, PM guide cards, and perform PM IAW the system manufacturer's published PM standards for all equipment associated with these systems (TE-4 has a C-04 generic guide card for tracking this PM requirement in the CMMS). All computers networked with control systems shall be maintained to the following minimum standard:

1. An approved anti-virus software subscription shall always be kept in effect and the software used;
2. If the network can connect to the outside through a broadband connection, an approved firewall shall always be used;
3. An approved spy-ware protection program shall be obtained and used;
4. Contractor personnel shall be prevented from using the system to connect to web sites not reasonably related to building operations;
5. Monthly anti-virus and spy-ware scans shall be conducted;
6. Monthly Windows (or other operating system) critical updates shall be downloaded and installed;
7. Complete data backup to a CD, DVD or flash drive, to include system database and operating system software, shall be conducted at least weekly and whenever a software or programming change is made; a copy of the backup database shall be maintained and provided to the COR on a monthly basis as part of the Monthly Progress Report;
8. Disk drive maintenance to include de-fragmentation shall be performed quarterly.

3.4.10 Oil Analysis and Oil Changes

3.4.10.1 Periodic Oil Analysis

The Contractor shall establish and implement an Oil Analysis Program. The program shall be submitted to the COR during the phase-in period for approval. The program shall include a schedule for oil analysis test to be performed (at least annually), manufacturer's recommendations, diagnostic standards, thresholds for oil changes, and sample analysis forms. Oil analysis shall be conducted to maintain a consistent methodology for data collection, analysis and historical trending. Periodic oil analysis must include, but not be limited to chillers of 50 tons or greater cooling capacity. Periodic oil analysis shall be performed prior to annual maintenance requirements so that results may be considered in performing maintenance. Results of the analysis are to be supplied to the COR within 21 days of the samples being taken. Where oil analysis indicates a need for corrective action, an appropriate work order shall be created in the CMMS and the appropriate corrective action taken. Oil and refrigerant additives shall only be used when approved in writing by the equipment manufacturer and the COR.

3.4.10.2 Non-Destructive Chiller Tube Analysis

The Contractor shall establish and implement an Eddy Current Tube Analysis Testing Program covering all central cooling refrigeration machines larger than 100 Tons.

Coordinate performance of this PM activity with performance of annual PM on the central or packaged chilled water units (PM guides R-3, R-4, R-5, R-6 and R-7, as applicable).

1. The testing program shall be performed on a 3-year cycle.
2. Complete an eddy current test of all heat exchanger tubes, evaporator and condenser (also concentrator and absorber in absorption units).
3. The test shall be performed in accordance with current requirements and procedures of the American Society of Mechanical Engineers (ASME) Boiler and Pressure Vessel Code Section V Nondestructive Examination, Article 8, Eddy Current Examination of Tubular Products and applicable recommended practice standards of the American Society for Testing and Materials for Eddy Current Testing.
4. A Certified Level II or higher technician or equivalent shall be used for this analysis in accordance with the American Society of Non-destructive Testing Recommended Practices, SNT-TC-1A, or current version.
5. The test is to be witnessed by the COR or designated inspector.
6. Reports: A copy of the magnetic tape record shall be maintained by the NDT contractor and furnished if requested by the Government.
7. A preliminary job site report shall be provided as soon as the test is completed.
8. Within ten (10) working days following completion of the test, the NDT contractor shall provide two complete test reports which shall include as a minimum the following:
 - a) Written test procedures.
 - b) Recommendations – List all tubes recommended for replacement or isolation.
 - c) Make complete description of defects (location, depth, inside or outside surface).
 - d) Map location – show tube row, number and support for each tube bundle.
 - e) Name of technician performing tests and evaluating data.
 - f) Contractor's certification of technician qualifications.

3.4.11 Boiler/Pressure Vessel Operation and Inspection Standards

The Contractor shall fully comply with the following standards while performing operations of this equipment:

1. ASME Boiler and Pressure Vessel Code.
2. National Board Inspection Code.
3. Environmental Protection Agency and local air quality management district requirements.
4. ASME CSD-1 Control & Safety Devices for Automatically Fired Boilers.
5. NFPA 85; Boiler and Combustible Systems Hazards Code.

Boiler inspections shall include both internal and external operating inspections and tests as described in Chapter 2 of “Inspection of Boiler and Pressure Vessels” of NBIC. The Contractor shall require the inspector to complete GSA Form 349 (Inspection Report of Boiler) or equivalent COR approved form for each boiler

inspected. The Contractor shall have all unfired pressure vessels with design operating pressure in excess of 60 PSI and having a capacity in excess of 15 gallons inspected annually. The Contractor shall complete GSA Form 350 (Inspection Report of Unfired Pressure Vessels) or equivalent approved form for each unfired pressure vessel inspected. A GSA Form 1034 (Certificate of Inspection) or equivalent COR approved form shall be completed and posted on or near the equipment. Inspections shall be made by inspectors certified by the National Board of Boiler and Pressure Vessel Inspectors and must be employed by an independent firm specializing in boiler and unfired pressure vessel inspections.

3.4.12 Backflow Prevention Devices

The Contractor shall maintain and certify all existing backflow prevention devices, as prescribed by Federal, State, local laws, ordinances and regulations. If no local requirement exists, a certified inspector shall inspect all existing backflow prevention devices on an annual basis and provide a certificate of proper operation to the COR or designee. While the Government will generally pass on to the Contractor backflow testing notices received from local water districts or other local authorities, the Contractor is responsible for timely completion and submission of such test results regardless of receipt of such notices.

In addition to other requirements, backflow prevention devices used on water-based fire suppression systems shall be inspected, tested and maintained in accordance with NFPA 25.

3.4.13 Domestic Water System

The contractor shall operate, sample, flush and test domestic water systems in accordance with the U.S. Environmental Protection Agency (EPA) National Primary Drinking Water Regulations (40 C.F.R. § 141), GSA Order PBS 1000.7.A (November 16, 2023) - *Drinking Water Quality Management* and the *PBS Desk Guide for Drinking Water Quality Management*, the *PBS Desk Guide for Drinking Water Quality Management*, *PBS Guidance to Maintain or Restore Water Quality* and all applicable state and local codes.

3.4.13.1 Reserved

3.4.13.2 Reserved

3.4.13.3 Repaired, Modified, Serviced or Breached

The Contractor shall comply with the EPA Use of Lead Free Pipes, Fittings, Fixtures, Solder, and Flux for Drinking Water (40 C.F.R. § 143 Subpart B), which address the quantity of lead allowable in new installations or repairs to existing drinking water systems and plumbing. Domestic water systems that are repaired, modified, serviced, or breached in any way shall be disinfected, flushed and tested as required by GSA Order PBS 1000.7.A (November 6, 2023) - *Drinking Water Quality Management* and the *PBS Desk Guide for Drinking Water Quality Management*, prior to returning the system to service. Flushing shall follow a unidirectional approach to ensure freshwater is available and to avoid introducing or moving contaminants from one location to another.

3.4.13.4 Reserved

3.4.13.5 Routine Flushing for Childcare, Health Units, and Showers

Routine Flushing for Child Care Centers, Health Units or Showers in facilities that do not meet the Applicable Buildings criteria identified in the [Public Buildings Service Guidance to Maintain or Restore Water Quality](#).

The Contractor shall conduct specific weekly flushing requirements for Child Care Centers, Health Units, and showers. The following also contains monthly requirements for cleaning or replacement of aerators in Child Care Centers, Health Units and showers as well as flushing of dead legs:

1. If applicable, on the morning of the first regular business day of each week, all water outlets in CCCs must have cold and hot water flushed.
 - a. Locate the furthest outlet from the incoming source in the CCC, run both the hot and cold water, and let the water run for 10 minutes.
 - b. Open the cold water at each outlet and let the water run for one minute or longer until it reaches the minimum cold water temperature.
 - c. Open the hot water at each outlet either simultaneously or independently from the cold water. Allow the water to run for at least one minute or longer until it reaches its maximum hot water temperature.
 - d. Run all refrigerated water fountains for a minimum of 3-5 minutes.
2. If applicable, all water outlets in health units must have cold and hot water flushed weekly.
 - a. Locate the furthest outlet from the incoming source in the health unit, run both the hot and cold water, and let the water run for 10 minutes.
 - b. Open the cold water at each outlet and let the water run for one minute or longer until it reaches the minimum cold water temperature.
 - c. Open the hot water at each outlet either simultaneously or independently from the cold water. Allow the water to run for at least one minute or longer until it reaches its maximum hot water temperature.
 - d. Run all refrigerated water fountains for a minimum of 3-5 minutes.
3. If applicable, all showers must have cold and hot water flushed weekly.
 - a. Flush will continue until the temperatures stabilize or a disinfectant residual is detectable.
4. The aerators in the CCC, health unit, and showers must be cleaned or replaced monthly if damaged.
 - a. An effective way to remove the need for aerator maintenance is to replace aerators with laminar flow aerators.
5. If applicable and feasible, dead-end legs of domestic water systems identified during routine maintenance must be flushed monthly.
 - a. Flush will continue until the temperatures stabilize or a disinfectant residual is detectable.
 - b. If flushing is not feasible due to the lack of a valve or other contributing factors, the O&M must contact the COR to get feedback from the PBS Regional Facilities Operations and Environmental, Health, Safety, & Fire Protection program offices responsible for drinking water.

3.5 Personnel Requirements

The Contractor shall provide adequate numbers of qualified personnel to assure satisfactory performance of the services required by this contract. The minimum acceptable personnel qualifications for the positions are shown below in 3.5.1 through 3.5.6. The Contractor shall adhere to any special certification, licenses or training requirements required by Federal, State or Local Jurisdictions. However, the COR may waive the minimum requirements stated herein as deemed necessary. The Contractor's proposal shall include position descriptions (PD) and qualifications standards that shall be used in hiring all personnel to be employed because of this contract. The proposal shall include a specific PD and specific minimum qualifications criteria to be used in hiring personnel for each position to be included in this contract. The criteria shall include but is not limited to the following: the minimum number of years of relevant experience (performing similar work at facilities with similar complexity in equipment and building operations as proposed under this contract); specific type of experience required for each type of position, certifications for each type of position, education/training for each type of position, etc. During the first 10 calendar days of the phase-in period, the Contractor shall provide resumes that are in compliance with minimum qualifications and position descriptions criteria submitted in their original proposal for all contract personnel. The CO/COR will review the resumes for compliance with the Contractor's proposal. The Government may request additional candidates and resumes for replacement of any personnel resumes submitted that the Government deems to be non-compliant with the Contractor's proposal. In general, if the Government makes a request for additional candidates/resumes, the request will be made within 10 days of receipt of the Contractor's resumes. The Contractor must provide the additional resumes addressing the Government's concerns within 10 days of receipt of the request from the CO/COR. In addition, the Contractor shall provide resumes for any replacement personnel assigned to this contract so the CO/COR can review them for compliance as well. All replacement personnel shall meet or exceed all the original personnel qualifications and experience criteria in the Contractor's proposal. Within 7 days of the government's acceptance of personnel the contractor shall submit the employee's information for background checks as directed by the COR.

3.5.1 On-Site Project Manager

The Contractor shall provide an on-site project manager dedicated to this contract. The Project Manager shall be available on-site from 7:30am to 4:00pm, Monday-Friday and at any other times required to effectively manage all contract work. During normal Government working hours, the Project Manager shall respond to questions from the COR within 30 minutes of the request. The Contractor shall, in writing to the COR, designate another on-site person to act for the Project Manager during any temporary absence of the Project Manager. As a minimum, project managers shall possess at least four (4) years of recent experience (within the past 7 years) as a first line supervisor in directing personnel responsible for accomplishment of similar operations, maintenance and repair work of equal or greater complexity than this facility. Experience shall be in buildings of at least the similar size and characteristics of the building(s) to be operated and maintained. This includes but is not limited to experience in accomplishing preventive maintenance management and repairs to the following types of systems with similar rated capacities: Uninterruptible Power Supply (UPS) systems, large chiller plants, low pressure boilers, computerized fire alarm systems, emergency generators, high voltage switchgear, and complex building automation systems. The project manager's pager or cell phone shall enable Government personnel to be able to contact the project manager 24 hours per day, 365 days per year.

3.5.1.1 On-Site Computerized Maintenance Management System (CMMS) Administrator

The Contractor shall provide an on-site CMMS Administrator dedicated to this contract. The CMMS Administrator shall be available on-site from 7:30am to 4:00 pm, Monday-Friday and at any other times required to effectively manage all CMMS activities, including all database management contract work. During normal Government working hours, the CMMS Administrator shall develop and provide all necessary reports and database queries as requested by the COR within 4 hours (unless the COR agrees to a longer time frame). The Contractor shall designate another qualified individual or subcontractor to perform all CMMS Administrator activities required during any temporary absence or disqualification of the CMMS Administrator for more than 2 weeks (including prohibition of using the CMMS due to clearance issues). As a minimum, the CMMS Administrator shall possess at least two (2) years of recent experience (within the past 5 years) performing similar duties as those required by this contract.

The regulations and references associated with this solicitation are shown at Technical Exhibit TE-9.

3.5.1.2 Custodial Personnel

3.5.1.2.1 Qualifications of Supervisory Employees

Supervisory contract employees shall have a minimum of 3 years of experience in managing custodial services in building(s) of similar size and complexity. At the discretion of the CO or COR, formal training may be substituted for experience. The on-site supervisor is required to be fully conversant in English.

3.5.1.2.2 Qualifications of Other Contractor Personnel

1. The personnel employed by the Contractor shall be capable employees, trained and qualified in the related type service requirements.

3.5.2 On-Site Shift Supervisors

Shift Supervisors shall be journeyman level personnel deemed as a working supervisor on shifts not worked by the Project Manager. Shift Supervisors shall be responsible to make all critical decisions for contract operations in the absence of the Project Manager. Shift Supervisors shall possess at least four (4) years of recent experience (within the past 7 years) of operating and maintaining facility equipment that is of similar size and types as to what is in the facility that this solicitation is for.

3.5.3 Electricians

The Contractor shall provide at a minimum one full-time on-site electrician. The electrician shall be available on-site from 7:30am to 4:00pm, Monday-Friday and at any other times required to effectively accomplish all contract work. Electricians shall have a current journeyman commercial/industrial license issued by a State or other accredited board. Electricians performing Contractor work shall have at least four (4) years' experience at the journeyman level experience obtained within the past seven (7) years in the field of inspection, testing, troubleshooting, repairing, operating and performing preventive maintenance on complex electrical power distribution systems. All certification testing of electrical power distribution equipment shall be performed by journeyman electricians who are accredited by the National Electrical Testing Association (NETA) or equivalent. All certification testing of switchgear and breakers shall be performed by an independent bonded testing firm specializing in this type of work.

3.5.4 Heating Ventilation Air Condition (HVAC) Mechanic

HVAC mechanics performing Contractor work shall have at least four (4) years of journeyman level experience obtained within the past seven (7) years in a trade or occupation in maintenance, repair and operation of buildings such as: air conditioning equipment mechanic, refrigeration equipment mechanic, Operating Engineer, HVAC control systems mechanic, etc. These qualification standards apply to both initial and replacement HVAC mechanics. Personnel engaged in the maintenance, servicing, and repair of refrigerant-containing equipment/systems shall be trained and certified as a Universal Technician (See 40 CFR 82.) by an Environmental Protection Agency (EPA)-approved source in the proper handling, recovery, and recycling of CFC refrigerants.

3.5.5 Maintenance Mechanic

Maintenance Mechanics shall have four (4) years of experience obtained within the past seven (7) years in a trade or occupation in maintenance, repair and operation of complex buildings equipment and systems such as performed by a stationary engineer, air conditioning equipment mechanic, maintenance electrician and/or maintenance plumber/pipe fitter. The experience shall have included journeyman level experience in at least two of the following trades/activities and relevant knowledge of the remaining trade activities:

1. Operating/adjusting building HVAC systems for efficiency and comfort,
2. Maintaining/trouble shooting/repairing the following systems/equipment:
 - a. Chillers and chilled water systems,
 - b. Building HVAC equipment
 - c. Boilers and hot water heating systems,
 - d. Domestic water and plumbing systems,
 - e. Electrical systems including lighting, motors, starters, contactors, etc.
 - f. BMS/BAS controls

3.5.6 Specialized Equipment Maintenance

The Contractor shall utilize the manufacturer, manufacturer certified service firm or representatives/specialists who are factory-trained certified technicians to accomplish all scheduled and unscheduled preventive maintenance and repair services on the systems noted below. The contractor shall supply with their proposal a list of subcontractors they intend to utilize for each system as identified below. If the Contractor chooses not to use the manufacturer or manufacturer certified service firms to perform the work, the Contractor shall provide to the COR, at the start of the phase-in period, certification(s) by the manufacturer, on manufacturer's letterhead, signed by the appropriate company official, stating that specific (listed by name), Contractor employee(s) have been trained and certified by the manufacturer to maintain and/or service the equipment for which they will work on and all employee certifications shall be current. Systems requiring specialized maintenance are as follows:

1. Fire Alarm/Protection and Sprinkler Systems
2. Weight Handling Equipment
3. Emergency diesel engine driven generators (annual PM and repairs)
4. UPS/RUPS/SUPS Systems including paralleling switch-gear
5. Building Automation System

6. High/Low Voltage Switchgear
7. Pressure Vessels
8. Backflow Preventers

3.6 On-Site Hours of Operation

Andover Service Center (ANSC), 310 Lowell St. Andover, MA 01810	
Normal Government Work Hours	24 hours a day / 365 days per year
Facility Operating Hours	24 hours a day / 365 days per year
On-Site Staffing	Required 24 hours a day / 365 days per year

Shift times and staffing requirements shall be based upon the Contractor's approved Staffing Plan submitted with its proposal. Proposed changes to the Staffing Plan shall be submitted for prior review and approval by the Contracting Officer and shall be submitted at least 30 days prior to the proposed effective date of change. No change shall be made to the approved Staffing Plan without the Contracting Officer's prior written approval.

The Contractor is fully responsible for performing all contract requirements in a satisfactory manner, regardless of its approved Staffing Plan. Any adjustment needed to increase staffing in order to satisfy contract performance requirements shall be at no additional expense to the Government.

In the event of an unscheduled government holiday or other business type shutdown (e.g. inclement weather), the Contractor shall provide adequate staffing (approved by the COR) to ensure minimal building operation at no additional cost to the government.

The Contractor shall be responsible to provide a minimum of one journeyman level employee on each shift to perform scheduled and unscheduled maintenance, equipment and building repairs, HVAC equipment operations, service calls, equipment checks and emergency services as necessary 24 hours per day, 7 days per week, 365 days per year.

Personnel responsible for the operation of the heating, ventilation and air conditioning systems at non 24 hour operated locations may be required to be available at earlier or later times than the above-mentioned specified times to start up and shut down HVAC equipment in accordance with the Building Operating Plan to ensure that all buildings are within temperature guidelines during normal Government work hours or at times when requests for additional services are granted. The Contractor shall also be responsible for preventing freeze damage to the building and its equipment whenever the outside temperature and/or wind chill is 32 degrees Fahrenheit or lower.

3.7 Environmental, Health and Safety (EHS) Requirements

3.7.1 General

Contracted services must be performed in a manner consistent with the Internal Revenue Service's (IRS) EHS policy (IRMs 1.2.1.2.35 P-1-235, 1.14.5 and 1.14.12), and applicable federal, state and local EHS laws and regulations. The IRS contractually transfers responsibility to its contractors for compliance with

applicable EHS laws and regulations, IRS policies, and for adherence to standards identified in contracts. The contractor shall strictly follow all IRS environmental requirements and practices.

All contractors working at IRS facilities must comply with the requirements and procedures established at that IRS facility for managing environment, health and safety (EHS) liabilities. An important part of environmental management pertains to the control of contractors and suppliers, who by the nature of their activities have significant potential to affect environmental performance and compliance of the facility. IRS policy on environmental management includes:

- Compliance with all applicable environmental, health, and safety regulations;
- Minimization of health and safety risks;
- Prevention of pollution and minimization of waste;
- Establishment and utilization of procedures aimed at controlling and improving environmental, health, and safety performance.

Contractors must perform their contracted services in a manner consistent with these principles.

Contractors are responsible for communicating applicable information on IRS EHS policies to their employees.

O&M contractors will provide, to their personnel, all required EHS training relevant to the facility in which they are working at no additional cost to the government.

3.7.2 Submittals

The Contractor shall submit the following EHS submittals to the IRS:

- Written Environment Health and Safety Program: Contractors shall submit a written Environmental Compliance and Safety Program/Plan that describes the contractor's EHS policies and how the contractor complies with federal, state and local regulations commonly applicable to the type of work to be performed under this contract. Regulations may include but are not limited to: RCRA, CWA, CAA, EPCRA, OSHA and the relevant state regulations that coincide with those listed. These plans shall include relevant written plans and programs required by EPA and OSHA including but not limited to Hazard Communication Program, Blood borne Pathogens Program and Plan, Security Transportation Plan, Spill Prevention Countermeasure and Control Plan, Confined Space Program, Lockout/Tagout Program, etc. The Environmental Compliance and Safety Plan shall be submitted to the COR for approval within the phase-in period. The COR shall return the plan with approval or written recommendations to make it acceptable to the contractor within two weeks after receiving it from the contractor. If corrections are necessary, the contractor shall have two additional weeks to make the necessary adjustments to the plan. Failure to provide the plan will result in deductions being taken via the QASP each and every month it is not completed and/or approved.
- Safety Data Sheets (SDS): For each chemical-based product they intend to use, contractors must submit SDS to the COR for review and approval by the Senior Safety Officer/Environmental Coordinator at least two weeks prior to use of such products.

- Proof of EHS Training: Contractors shall submit proof of applicable employee EHS training including, but not limited to: fire extinguisher training, powered industrial truck training, hazard communication training, 24 hour HAZWOPER training, Spill Prevention Countermeasure and Control Plan training, fall protection training, roof access training, electrical safety training, asbestos awareness training, lead-based paint abatement training, hearing conservation training, confined space training, RCRA training, bloodborne pathogen plan training and respiratory protection training. This documentation must be submitted to the COR and approved during the phase-in period. Should the contractor bring additional employees or sub-contractors on-site, their training documentation shall be submitted to the COR within 30 days of their start date. Failure to provide proof of the required training for any employee or sub-contractor could result in deductions being taken each and every month the employee training documentation is not provided.
- Waste Management Plan: The contractor shall discuss and review with the COR and the IRS facility's Senior Safety Officer, the contractor's waste management strategy, procedures, schedules, specific requirements for waste materials recycling, and disposal, as well as hazardous and universal waste management during the first two weeks of the phase-in period. The contractor will be required to write a Waste Management Plan that outlines the agreed-upon procedures and submit it to the COR for review and approval before the end of the phase-in period. The COR shall return the plan with approval or written recommendations to make it acceptable to the contractor within two weeks after receiving it from the contractor. If corrections are necessary, the contractor shall have two additional weeks to make the necessary adjustments to the plan. Failure to provide the plan will result in deductions being taken via the QASP each and every month it is not completed and/or approved.

3.7.3 Scheduling and Recordkeeping

The contractor shall maintain copies of all EHS testing, certifications, permits, SDSs and other required records, as well as furnishing the originals to the COR within 5 business days of creating or receiving the documentation. In addition, all required safety and environmental tests, certifications, permits, inspections required by plans such as the (SPCC) Spill Prevention, Control & Countermeasure Plan (and other procedures required herein shall be scheduled in the CMMS work order system as tasks and the results documented in the CMMS.

Injury and illness recordkeeping and reporting shall comply with 29 CFR 1604. The COR shall be notified of any on-site contractor fatality or injury within 24 hours.

Records: Copies of records will be provided to the COR at the time of regularly scheduled contract meetings. The contractor shall also maintain these records for the duration of the contract and two (2) weeks prior to the contract's conclusion shall be provided to the IRS's COR. Records will be available for review upon request while the contractor is on site. These records include but may not be limited to: Employee EHS training records, refrigerant management logs, hazardous waste manifests, any records associated with monitoring or measurement required by permits and of environmental and/or health and safety controls, and spill reports.

3.7.4 IRS Environmental Permits

Certain facility operations may be covered under or require permitting from regulatory agencies. The contractor shall have knowledge of and adhere to all of the operating conditions, monitoring, record keeping,

permit renewal fees, annual fees and any other requirements of such permits. The IRS will be responsible for obtaining any necessary permits. However, the contractor is responsible for permit renewal, the cost of any corrective actions required by regulators or fines imposed by regulators due to conducting operations outside the limits of applicable permits or for failure in adhering to any monitoring, record keeping or reporting requirements. The contractor shall directly pay any fines to the regulating office that imposed the fine. In the event the IRS pays the fine, deductions for the exact amount of the fine shall be taken via the QASP.

Facility should list all required permits with associated due dates: No Environmental Permits are currently required to be maintained by the Contractor. In the case Permits are required in the future the contractor shall adhere to this section.

3.7.5 EHS Compliance

The contractor is responsible for the safety and health of his/her employees and IRS personnel while working on site. Contractors shall be familiar with and shall comply with all applicable Federal, state and local regulations and standards including those promulgated by the U.S. Environmental Protection Agency, Occupational Safety and Health Administration, the state in which the facility is located and any local county or municipal regulations. The contractor shall also comply with the most recent version of applicable standards and codes adopted by the IRS and the IRS facility. These codes and standards are listed in TE-9, Applicable Standards and References. In the event of conflict between adopted standards and codes, the more stringent requirement is to be applied.

3.7.6 EHS Inspections

IRS conducts unannounced EHS inspections throughout IRS workspaces including operational areas occupied by contractors. IRS maintains the right to stop any work where there is an immediate and serious threat to the safety and health of contractors or IRS employees or a serious threat to the environment. Inspection findings will be forwarded to the COR. If, during the course of the contract, IRS personnel note any situations of non-compliance with federal, state, or local regulations, the contractor's environmental and safety program/plan or IRS EHS policies and requirements, IRS personnel will verbally bring them to the attention of the CO and/or COR and will immediately follow up in writing. The Abatement and associated cost of violations shall be the responsibility of the contractor and/or the Government as determined by the ACO with input from the COR.

3.7.7 EHS Training

Contractors will ensure that employees, including sub-Contractors and sub-contractors with less than 10 employees, are trained on all applicable EHS regulations and on general information relating to the IRS's EHS policies, procedures and the contractor's approved Waste Management Plan. IRS will provide the contractor with information on IRS emergency response procedures upon execution of the contract. Contractors will participate in applicable IRS facility emergency/fire drills.

3.7.8 Personal Protective Equipment

The Contractor shall perform and document Job Hazard Analyses (JHA) on job tasks that have recognized associated hazards and provide the required personal protective equipment (PPE) to their employees relative

to the hazards identified at no additional cost to the government. The documented JHAs shall be made available to the CUOR or IRS EHS personnel upon request.

3.7.9 Occupant Protection

Contractors shall protect the occupants of the government building by installing warning signs, safety rails and barricades as applicable to prevent injury from unauthorized entry of personnel into work areas while repairs/maintenance is being performed.

3.7.10 Housekeeping

Contractors must clean up the work area on a daily basis. Tools must be secured and stored neatly.

Contractors must not block fire extinguishers, electrical panel boxes, passageways, corridors, sidewalks, pedestrian walks, alleys or entranceways of buildings during performance of work under the contract.

Activities Impacting Indoor Air Quality (IAQ): Many operations and maintenance activities generate and disperse contaminants that adversely impact indoor environmental quality and associated human health and/or safety. The contractor must perform operations and maintenance activities in a manner that minimizes dust, containments, and debris that could adversely impact IAQ.

3.7.11 Equipment

All equipment powered industrial trucks, vehicles, scaffolding, ladders, tools, protective equipment, overhead cranes etc., must be in good, safe working order and must comply with OSHA standards. All inspections and certification of equipment that is required by OSHA is the responsibility of the contractor at no additional cost to the government.

Prohibited Equipment: Powder-actuated fasteners or other power tools such as nail guns are prohibited from use at IRS. Gasoline and diesel-powered equipment shall not be permitted within the IRS buildings. The use of propane-powered equipment indoors may be approved on a case-by-case basis by CO/COR, if the equipment is outfitted with an effective catalyst exhaust system. The exhaust catalyst must reduce carbon monoxide (CO) emissions at the exhaust pipe opening to 25 parts per million (25 ppm) or less.

3.7.12 Accidents, Mishaps and Near Misses

The Contractor shall submit a written report for any incident involving property damage, serious injuries, illnesses, potentially hazardous conditions or general occupational and environmental, health, and safety concern. The report must be submitted to the COR and Senior Safety Officer within five calendar days of the event.

3.7.13 Fire Protection

Compliance: The contractor will comply with applicable federal fire protection regulations, standards and codes, Department of Treasury and IRS policies and requirements, and IRS adopted standards and codes. These standards and codes include the International Fire Code (IFC) and the National Fire Protection

Association (NFPA) Code. A complete list of adopted codes and standards is provided in TE-9, Standards and References. In the event of conflict between adopted standards and codes, the more stringent requirement is to be applied, except that the International Building Code (IBC) Means of Egress Chapter is replaced by the entire contents of the most recent edition of NFPA 101.

Egress: The contractor shall not impact an established means of egress from the work area or building. Means of egress shall be continuously maintained free of all obstructions and impediments to full instant use in the case of fire or other emergencies.

Flammable Liquids: Gasoline and liquids with a flash point below 100 degrees Fahrenheit shall not be used without written consent of the COR. Any flammable and combustible liquids that are utilized by the contractor shall be stored in a cabinet specifically designed to store flammables and shall be provided by the contractor.

Fire Alarm: During planned drills and actual emergencies, contractor employees must exit the building and assemble in IRS-established assembly areas. The Occupant Emergency Plan and assembly areas are provided to the Contractor upon execution of the contract or can be obtained from the COR. The project manager shall determine if all contractor employees are accounted for. If an employee is missing, the project manager shall notify the nearest IRS Monitor.

Cutting, Welding, Burning, and Fire Suppression/Alarm Outage Permits: The contractor is expected to follow the procedures the facility has established for burn permits, including appropriate notification and requests to have alarms removed from service. The contractor is expected to follow safe welding and burning procedures per 29 CFR 1910 Subpart Q.

3.7.14 Electrical Safety

Compliance: The Contractor will comply with applicable 29 CFR 1910 Subpart S, NFPA 70 and 70E and other adopted codes and standards identified in TE-9, Standards and References. As noted in other sections of this specification, in the event of conflict between the standards and codes, the more stringent requirement is to be applied.

Lock Out/Tag Out: The contractor shall develop a written program for Control of Hazardous Energy (Lock out/Tag out) per 29 CFR 1910.147 including equipment specific LO/TO procedures. The program and procedures shall be submitted to the COR and Senior Safety Officer within the first 30 calendar days of the phase-in period. The COR shall return the program plan with approval or written recommendations to make it acceptable to the contractor within two weeks after receiving it from the contractor. If corrections are necessary, the contractor shall have two additional weeks to make the necessary adjustments to the plan. Failure to provide the plan will result in deductions being taken via the QASP each and every month it is not completed and/or approved.

Portable Electric Equipment: Portable equipment shall be handled in a manner which will not cause damage or electrical shock. Flexible electric cords (extension cords) connected to equipment may not be used for raising or lowering the equipment. Flexible cords may not be fastened with staples or otherwise hung in a fashion that could damage the outer jacket or insulation. Flexible cords shall be inspected regularly and removed from service if insulation is damaged. All hand and portable-powered tools must be maintained in good condition and in a safe working order.

Ground-Fault Circuit-Interrupters (GFCI): Portable or cord-connected GFCI shall be provided by and used by the contractor whenever working in wet areas. The contractor shall inspect all operational areas under their responsibility to ensure outlets are in good working order. If they find that outlets in potentially wet areas, such as those near sinks, are not GFCI they shall bring it to the attention of the COR for corrective action to be taken by the IRS.

3.7.15 Compressed Gas Cylinder Safety

Compliance: The contractor will comply with applicable OSHA standards and Compressed Gas Association (CGA) specifications and other adopted codes and standards identified in TE-9. As noted in other sections of this specification, in the event of conflict between the standards and codes, the more stringent requirement is to be applied.

Inspection: Contractors must inspect compressed gas cylinders per standards displayed in the CGA pamphlets. Unlabeled cylinders are not to be used. In addition to Contractor inspections, IRS Safety Officers may conduct unannounced inspections (see section 3.7.6 regarding EHS inspections and corrective action).

3.7.16 Power Industrial Trucks (PIT)

Compliance: The contractor will comply with applicable OSHA standard 29 CFR 1910.178 regarding powered industrial trucks.

Equipment shall be inspected in accordance with the above regulation and records shall be maintained on site and made available to the COR at all times.

3.7.17 Confined Spaces

Each facility has a listing identifying confined spaces that will be provided to the contractor. The contractor shall develop a written confined space program in accordance with 29 CFR 1910.146 and it shall be submitted to the COR within the first 45 calendar days of the phase-in period. The COR shall return the program plan with approval or written recommendations to make it acceptable to the contractor within two weeks after receiving it from the contractor. If corrections are necessary, the contractor shall have two additional weeks to make the necessary adjustments to the plan. Failure to provide the plan will result in deductions being taken via the QASP each and every month it is not completed and/or approved.

3.7.18 Air Emissions

The contractor will not cause any air emissions that would be subject to environmental permitting or control requirements. The contractor shall control emissions from activities on-site in accordance with the federal, state and local requirements.

3.7.19 Underground Storage Tanks

The contractor is responsible for complying with all federal, state and local requirements for the periodic inspection, monitoring, testing, certification and maintenance of underground storage tanks (USTs) and related equipment.

- Contractor employees who operate USTs must complete the state-required Class B training.
- Contractor employees who respond to spills involving USTs must complete the state-required Class C training.

3.7.20 Spills and Releases

The contractor shall manage spills and releases including prevention, notification, identification of abnormal conditions and corrective action as follows:

- If the facility has a Spill, Prevention Countermeasure and Control Plan then the contractor is to manage spills of oil based substances covered by the plan in accordance with the procedures and requirements of the plan.
- Contractors will provide training to an adequate number of personnel (to cover all shifts) that meets the requirements of the 24 Hour HAZWOPER standard at no additional cost to the government. All employees shall be trained to at least the 8 Hour HAZWOPER standard except those whose function is purely administrative.
- Spill Release Prevention: Contractors will provide adequate spill/release prevention equipment and procedures for all materials stored or used on site.
- Spill Notification: Contractors will notify the COR and other IRS personnel as appropriate and as directed by on site emergency plans.
- Abnormal Conditions: Contractors will notify the COR of any abnormal environmental conditions found during work conducted at the facility. Visibly discolored soils, soils with discernible odor, and/or heavily stained concrete must not be removed from the site without prior approval provided by the COR from IRS EHS personnel.
- Corrective Action: The contractor will initiate corrective action to contain/control and remediate any hazardous substance release or other contamination at the IRS facility. For large releases the contractor will have adequate equipment to prevent the entry of a hazardous substance into the storm or sanitary sewers and then will contract with a qualified company with the training and resources to conduct a hazardous materials spill cleanup.
- The contractor is responsible for the cost of any corrective action to address hazardous substance release or other contamination caused by the contractor arising in connection with the Contractor's activities at the IRS, including, but not limited to, costs to the IRS to complete corrective action and payment of any fines or penalties imposed by appropriate agencies.
- The contractor is only responsible for the costs to contain, clean-up and remediate a spill and the cause of it under the Spill Prevention, Control and Countermeasure Plan if the spill results from one of the systems they are contractually responsible for, one of the contract employees causes the spill, the spill is of a hazardous material brought on site by the contractor, or through any other action by the contract company or one of their employees.
- The O&M contractor is responsible for responding to all spills of substances covered under the SPCC, or any other hazardous material, to the level of Hazardous Materials Technician under the HAZWOPER Standard part 29 CFR 1910.120(q), as well as, contracting with an appropriately qualified hazardous materials clean-up company. If such incidents are caused by the IRS, its employees or other agents of the IRS, the costs associated with responding to and cleaning up such spills will be the responsibility of the IRS and be performed through the ADDITIONAL SERVICES portion of this contract.

3.7.21 Waste Management

The IRS is responsible for oversight of the proper characterization and management of all hazardous or other regulated industrial solid wastes generated from IRS facilities and operations including those generated from IRS contractor activities. The contractor shall conduct all operations in a manner that reduces or eliminates the generation of waste; and shall reuse, reclaim or recycle material to the maximum extent possible. The contractor is responsible for the following:

- The contractor shall containerize all generated hazardous waste into Department of Transportation approved containers, supplied by the contractor.
- The contractor shall manage all hazardous and universal waste materials generated from on-site activities in compliance with all federal, state, and local regulations, applicable IRS procedures, and the contractor's Waste Management Plan.
- The contractor shall maintain a small area as designated by the COR for the collection of hazardous and industrial solid waste which will be inspected by the IRS EHS staff on a periodic basis.
- The contractor will dispose of hazardous and/or industrial hazardous waste through a waste hauler licensed by the applicable state to transport hazardous waste to a licensed Treatment, Storage and Disposal (TSD) facility. The contractor shall ensure these universal wastes are recycled at the contractor's expense.
- No hazardous waste shall be kept onsite for more than 180 days.

3.7.22 Hazardous Material (HAZMAT)

In accordance with Section C.3.7.2 above, IRS EHS personnel must approve all materials brought on plant site, especially those of a hazardous or potentially hazardous nature. The contractor will maintain at the IRS work site SDSs for all hazardous materials present. Hazardous materials will be managed in accordance with applicable environmental, health, and safety requirements.

3.7.23 Refrigerants

The contractor shall follow all regulations and practices for service methods, certification of technicians, systems and recovery equipment certification, disposal of equipment and appliances and record keeping in accordance with 40 CFR Part 82.

3.7.23.1 Inventory of Refrigerants

The contractor shall develop a Refrigerant Management Plan for this contract in accordance with GSA and/or Federal regulations for the review and approval of the COR within the first 30 calendar days of the phase in period. The COR shall return the plan with approval or written recommendations to make it acceptable to the contractor within two weeks after receiving it from the contractor. If corrections are necessary, the contractor shall have two additional weeks to make the necessary adjustments to the plan. Failure to provide the plan will result in deductions being taken via the QASP each and every month it is not completed and/or approved. The contractor shall use the Refrigerant Compliance Manager (RCM), EPA-compliant software program or COR approved equivalent for data management of refrigerant usage and tracking.

The contractor shall update and maintain RCM concurrent with any Service Call and/or preventive maintenance performed on refrigeration systems. The contractor shall only allow employees or subcontractors that are certified technicians under section 608 of the Clean Air Act to perform this type of service. The contractor shall produce any records or documentation for Government or EPA inspectors as required validating EPA compliance.

The Contractor shall enter data into the database any time:

- A leak is detected;
- 30 day verification inspection is performed indicating refrigerant is not leaking;
- Refrigerant is added or
- Refrigerant is removed.

3.7.23.2 Reclamation of Refrigerants

The contractor shall use certified evacuation and recovery equipment in the reclamation of refrigerants. Refrigeration equipment turned in for disposal shall be completely emptied of refrigerants and labeled in accordance with EPA regulations. Proper documentation shall be maintained for each piece of refrigeration equipment prepared for disposal and made available at all times to the COR and turned over to government two weeks prior to the conclusion of contract.

3.7.23.3 Accountability for Refrigerants

The Contractor shall account for all refrigerants used. Audits of on-hand refrigerants and RCM shall be periodically conducted by the Government to verify that all refrigerants can be properly accounted for. The COR shall be immediately notified when refrigerants have been released to the environment or cannot be accounted for by the contractor. The accountability records of refrigerants shall made available at all times to the COR and turned over to government two weeks prior to the conclusion of contract.

Leaks that exceed 35% leak rate and cannot be corrected within 30 days must be reported to the EPA through the COR.

3.7.24 Emergency Planning and Community Right-to-Know Act (EPCRA)

The contractor shall maintain records of all hazardous materials brought onsite IAW 40 CFR Part 370. The supporting records shall be maintained for a period of five years for auditing purposes. These records shall include an SDS for each hazardous material as well as the following information:

- Maximum amount of the material onsite on any one day of the year.
- Average amount of the material stored onsite.
- Quantity of material used during the calendar year.
- Type of container used to store the hazardous material.
- Storage location of the hazardous material.
- The contractor shall make SDS readily available to any IRS or contractor employee who is, or may be exposed to the chemical.
- The contractor shall provide information on hazardous materials, over the reporting threshold, needed by the facility to comply with EPCRA.

- The contractor shall comply with and provide information necessary to meet reporting requirements under the Pollution Prevention Act (PPA), and Executive Order 13693.

3.7.25 Hazardous Building Material

3.7.25.1 Asbestos

The building(s) covered by this contract may have asbestos-containing material (ACM). All known ACM locations in the buildings are listed in the comprehensive Asbestos Inspection Reports available from each COR. The requirements of this paragraph shall also apply to any other asbestos containing material discovered during the term of this contract. Any suspected ACM found during the course of this contract shall be immediately reported to the COR who will report all findings to the Safety Officer. Any repair or removal of asbestos-containing material shall follow OHSA, State and EPA regulations.

- Survey: Asbestos surveys have been conducted in all delegated IRS facilities. Only accessible asbestos materials were identified. Friable ACM has been labeled with the letters ACM or has been marked with red spray paint where space is limited. Non-friable asbestos-containing materials such as floor tile, mastic, wallboard, laboratory counters and hoods, and roofing material have not been labeled.
- The contractor will ensure that any sub-contractor is made aware of locations where asbestos is known or suspected.
- Identification During Work: In the event the Contractor encounters previously unidentified asbestos or suspected asbestos during work at IRS, work shall cease immediately in the suspect area(s) and the Contractor shall inform the COR.
- The contractor is not responsible for asbestos removal or abatement work for the sole purpose of asbestos removal or abatement. If a repair requires that ACM be removed to obtain access to the work, the contractor is responsible for the removal of the asbestos. The Contractor shall immediately notify the COR of the situation in order to get his/her approval to remove the ACM. The contractor shall not remove any ACM prior to approval of the COR unless it is an emergency risking severe loss of property or the safety of IRS employees. The repair task shall be performed in two distinct phases: First, remove the asbestos in accordance with EPA and OHSA regulations and second, perform the original task. The repair task shall not be started until the interfering asbestos material has been properly removed. Employees who remove asbestos in order to make repairs must be trained as Class III Asbestos Workers in accordance with 29 CFR 1910.1101.
- The contractor shall be responsible for the removal or abatement of all asbestos-containing materials such as sediment dust, sprayed on applications or insulation, which are encountered and are incidental to the performance of repairs of a particular piece of equipment (per service call sections 2.2 and 2.3) as part of the basic services portion of this contract). This removal or abatement shall include the acquisition and payment of all required permits, as well as all protective procedures, air and bulk sampling, isolating the work area(s), protective clothing, asbestos training and certification, record keeping etc. All asbestos materials removed during the course of the maintenance or repair work shall

be disposed of in accordance with EPA regulations and shall be replaced with non-asbestos materials of equal insulating and fire-retardant properties (i.e., pipe lagging).

- All asbestos removed shall be properly documented and records kept in a permanent file. Asbestos records shall be made available to the COR/Asbestos Program Manager (APM) upon request. Upon final expiration/termination of the contract, all records will be turned over to the COR/Asbestos Program Manager.
- Use of Hazardous Materials: The Contractor shall not supply or install any building materials which contain asbestos fibers.

3.7.25.2 Lead-Based Paint

Lead-based paint (LBP) is present in some facilities and may be encountered by the contractor during work.

- Survey: IRS is responsible for coordinating and conducting all applicable LBP surveys and analyses for the work area(s) prior to demolition.
- Abatement: If lead-based paint is found, IRS shall note the LBP locations on the project drawings, where applicable. The abatement and disposal of the waste shall be performed by the Contractor per Section 01130 (Removal and Disposal of Lead-Based Paint) of this specification.
- Air Monitoring: The contractor shall provide an independent Contractor for monitoring of LBP abatement personnel. This includes all required personal and area air monitoring during the abatement process in accordance with 29 CFR 1926.62. All air monitoring reports will be submitted to the IRS LBP Coordinator through the COR.
- Use of Hazardous Materials: The contractor shall not use lead-based paints.

3.7.25.3 PCBs

Polychlorinated Biphenyls (PCBs) may be present in older lighting ballasts and other electrical devices and may be encountered by the Contractor during work. The contractor shall inspect all transformers containing polychlorinated biphenyl (PCB) and maintain records of such inspections in accordance with state, local, and EPA regulations. The COR or designee shall be notified immediately if any such equipment is found to contain PCB or is suspected of containing PCB. Equipment verified to contain PCB, except lighting ballasts, shall be labeled as containing PCB. All transformers that contain oil must be labeled "PCB containing" or "not PCB containing".

Any transformer leaks of PCB shall be reported immediately to the COR. The contractor shall inspect all leaks in accordance with State, local and EPA regulations. The contractor shall take immediate action to contain all leaks.

- Survey: A survey of PCB-containing equipment has not been conducted at the IRS facilities. Information on the presence of any such equipment in the work area will be provided if available.

- Identification During Work: In the event the contractor encounters PCB-containing equipment or equipment suspected to contain PCBs, this equipment shall be kept intact, and the contractor shall immediately notify the COR. In the event that the equipment is leaking, work shall cease immediately in the suspect area(s) and the COR shall be notified.
- Ballast Removal: PCB-containing ballasts shall be removed by the Contractor and placed in a DOT approved container. The contractor shall dispose of the ballast in accordance with all federal, state and local regulations.
- Use of Hazardous Materials: The contractor shall not supply or install any building equipment or parts that contain PCBs.

3.7.25.4 Other Hazardous Building Materials

Other hazardous materials that require special handling and disposal may be present in IRS facilities and may be encountered by the Contractor during work. These materials may include mercury-containing equipment (switches and monitoring devices) Lead-acid batteries, and other electrical devices that are not EPEAT conformant.

- Survey: A survey of this equipment has not been conducted at IRS facilities. Information on the presence of any such equipment in the work area will be provided if available.
- Identification During Work: This equipment shall be kept intact and the contractor should immediately notify the COR. In the event that the equipment is broken or leaking, work shall cease immediately in the suspect area(s) and the COR shall be notified.
- Removal: The Equipment or material shall be removed by the contractor and placed in a DOT approved container. The contractor shall dispose of any such waste in accordance with federal, state and local regulations.
- Use of Hazardous Materials: The supply or installation of equipment containing these hazardous materials by the contractor is prohibited.

3.7.26 Sustainable Building

As part of the operations and maintenance of the facility, the Contractor shall incorporate the sustainable practices in the Guiding Principles for Federal Leadership in High Performance and Sustainable Buildings (Guiding Principles). Contents of the Whole Building Design Guide can be found at www.wbdg.org and include clarification of requirements; related mandates; additional recommendations and considerations; and resources for implementation.

3.7.27 Green Purchasing

When acquiring goods and services, the contractor shall acquire green products including bio-based, environmentally preferable, energy-efficient, water-efficient, and recycled-content products. The Contractor

shall use paper of at least 30 percent post-consumer fiber content. When acquiring an electronic product to meet facility requirements, the contractor shall purchase Electronic Product Environmental Assessment Tool (EPEAT)-registered electronic products, unless there is no EPEAT standard for such product.

The contractor shall give preference to the purchase of:

- Recycled content products designated in EPA's comprehensive procurement guidelines.
- Energy Star® products identified by DOE and EPA, as well as FEMP-designated energy-efficient products.
- Water-efficient products, including those meeting EPA's WaterSense standards.
- Energy from renewable sources.
- Biobased products designated by the U.S. Department of Agriculture in the BioPreferred program.
- Environmentally preferable products and services, including EPEAT-registered electronic products.
- Alternative fuel vehicles and alternative fuels required by EPA.
- Products with low or no toxic or hazardous constituents Non-ozone depleting substances, as identified in EPA's Significant New Alternatives Program.

The contractor shall report on the types of bio-based products purchased and their respective dollar values as outlined in TE-14.

3.8 Security

3.8.1 Site Access and Clearances

The site-specific security directives are available from the COR.

3.8.1.1 Full Time and Frequent On-Site Access

All "full time" Contractor personnel and subcontract personnel, who frequently require access into the facility, may be issued "staff-like access" by the Government for "unescorted access" into the facility. The Government will provide all forms, take fingerprints and process the Security investigations. All Contractor personnel (including subcontract personnel) shall submit the required documentation to the appropriate party to acquire and maintain staff like access and shall take any required training to maintain the staff like access. Subcontract personnel requiring access for extended periods (more than 30 days) and/or more than one time per year, shall be required to obtain "staff-like access" as determined by the COR. When the Security investigation is completed and no derogatory or adverse information is cited, the IRS Security office will provide "staff-like access" and allow the individual "un-escorted access" to the facility. If the interim and/or permanent Security investigation of a Contractor employee identifies derogatory or adverse information resulting in a decision to not grant "staff-like access", that person shall not be allowed access to IRS facilities. When access by a Contractor or Sub-Contractor person is scheduled or predicted, the Contractor shall submit documentation for the Security investigation a minimum of 21 calendar days in advance of the anticipated employee reporting date to allow the issuance of "staff-like access". During the period following submission of the Security investigation documentation and the individuals' suitability determination, such Contractor personnel shall be signed in and escorted during their stay in the facility by Contractor personnel with approved "staff-like access".

3.8.1.1.2 Staff-Like Access Definition and Requirements

Only those contractors/subcontractors who require staff-like access to IRS systems, data, or facilities will follow the outlined process below. Those whose access is infrequent, or will not need staff-like access, and will be 100% escorted while in IRS space, will be managed by the Contracting Officer's Representative (COR). Escort access is only permitted for infrequent access to IRS facilities and is NOT permitted if subjects require sensitive but unclassified (SBU) data access or systems access.

Contractors/subcontractors are *not* permitted to have "staff-like access" to IRS facilities, systems, or SBU data until they are determined to be both eligible and suitable to perform work as an IRS contractor by IRS Personnel Security (PS). Each contractor/subcontractor assigned to work under an IRS contract shall undergo investigative processing commensurate with the risk level designation associated with the work to be performed, and comparable to that required for Federal employees who occupy the same positions and who have the same position sensitivity designation.

"Staff-like Access" is authority granted to perform one or more of the following:

- Enter IRS facilities or space (owned or leased) unescorted (when properly badged).
- Possess login credentials to information systems (IRS or Vendor-owned systems that store, collect, and /or process IRS information).
- Possess physical and/or logical access to (including the opportunity to see, read, transcribe, and/or interpret) Sensitive but Unclassified (SBU) data, wherever the location; (See IRM 10.5.1 for examples of SBU data).
- Possess physical access to (including the opportunity to see, read, transcribe, and/or interpret) security items and products (e.g., items that must be stored in a locked container, security container, or a secure room, wherever the location. These items include, but are not limited to security devices/records, computer equipment, Identification media. For details and further security requirements, see IRM 1.4.6.5.1, Minimum Protection Standards); or,
- Enter physical areas, wherever the location, that store/process SBU information (unescorted).

Staff-Like Access is granted to an individual who is not an IRS employee (and includes, but is not limited to: contractors/subcontractors, whether procured by IRS or another federal agency, Vendors, delivery persons, experts, consultants, paid/unpaid interns, other federal employees, cleaning/maintenance employees, etc.), and is approved upon required completion of a favorable suitability/fitness determination conducted by IRS Personnel Security.

3.8.1.1.3 Eligibility Requirements

Contractors must be eligible for IRS contract employment prior to submitting investigative forms/documentation used to determine their suitability. The vendor must communicate the eligibility requirements to their employees up front and state that only employees who meet the eligibility requirements should apply for IRS contract employment.

Contractor employees shall be federal tax compliant and must remain compliant while working on an IRS contract. Tax compliance will be determined by a check of the contractor employee's federal tax accounts by trained IRS employees, to ensure that the contractor employees are not currently delinquent on their federal tax obligations.

Contractor employees shall be U.S. citizens or Lawful Permanent Residents (LPR), based on their designated risk level. For foreign-born subjects requiring staff-like access, they shall provide their Alien Registration number, full name, and date of birth.

- a. If designated as low risk, contractors must be U.S. citizens or LPRs.
 - b. If designated as moderate risk, contractors must be U.S. citizens, or LPRs with a minimum of three consecutive years of U.S. residency from the date of legal entry as an LPR.
 - c. If designated as high risk, contractors must be U.S. Citizens.
- 1.2.3 Male contractors born after December 31, 1959, must be registered with Selective Service. If they are not registered, or are exempt from the requirement, they must provide a Status Information Letter from Selective Service.

Selective Service Registration Documentation – all male contractors/subcontractors requiring staff-like access who are born after 12/31/1959 must be registered with Selective Service (SS). Registration can be verified at the SS website at www.sss.gov.

Requirements include:

1. If the subject is properly registered, he must provide an official letter of verification from the SS website to the IRS. Letters can be printed/saved from the SS website upon verification of registration.
2. If the subject is foreign-born, the subject must contact the Selective Service (SS) Office and obtain the following to provide to the IRS:
 - a. a letter from SS stating the subject was not required to register; or,
 - b. a letter from SS stating the subject was required to register, but it's too late. The subject must also provide a written explanation as to why his non-registration was not knowing and willful.
3. If the subject is a US Citizen and was required to register but is not registered, the subject must provide a written explanation as to why his non-registration was not knowing and willful and provide it to the IRS.

3.8.1.1.4 Suitability Screening Requirements

Once deemed eligible, contractors will be screened for suitability or fitness for duty based on their backgrounds. This process begins with timely submission of required investigative forms. The vendor shall assign a Vendor point of contact (POC) to manage this process. Contractors/subcontractors needing staff-like access are *not* permitted to begin work on the contract until the required forms and documentation have been completed and properly submitted to PS (incomplete/inaccurate forms will be rejected by PS); and PS has granted, at a minimum, interim staff-like access approval to the contractor/subcontractor. *Only* those needing staff-like access are required to submit the forms.

Investigative Forms/Documentation:

The COR and vendor will work together to determine risk levels for each unique position type required by the contract as prescribed by PS, prior to or concurrent with submission of investigative forms.

Once the contract is entered into the tracking systems, the IRS will send the assigned Vendor POC an e-mail that will include the current investigative forms for all investigative processes, general guidance for completing documents, and instructions for properly submitting the completed documents. In addition, the Vendor POC e-mail will include instructions for what selective service registration and citizenship documentation is required from each applicant needing staff-like access. The e-mail will include the following forms, due within 10 business days of receipt (if IRS approval is required to confirm the qualifications of proposed contractor personnel, i.e. key personnel, documents must be submitted within 10 business days of receipt of this approval).

1. **Risk Assessment Checklist (RAC)** (this form provides PS with all required personal information about each contractor employee requiring staff-like access).
2. **Master Survey / Position Designation Tool** – This questionnaire asks the vendor POC and COR to identify the duties the subjects will be performing for IRS in order to determine risk level for the position. A separate risk assessment must be completed for each position type on the contract (i.e., Systems Administrator, Programmer, Clerk Typist, etc.).
3. **Optional Form 306 (OF-306), Declaration for Federal Employment** (investigative form used by PS to aid in determining subject's eligibility and suitability for staff-like access).
4. **Non-Disclosure Agreement** (all contractors who will have staff-like access to Sensitive But Unclassified (SBU) information are required to complete an agreement);
5. **Form 13340, Information Provided Concerning the Disclosure and Authorization Pertaining to Consumer Reports pursuant to the Fair Credit Reporting Act (FCRA)** (provides consent for PS to check subject's financial history); and,
6. **Notice 1379, Tax Check Notice** (provides subject with notification of IRS' intent to check federal tax compliance).

3.8.1.1.5 Fingerprinting and e-QIP

Following submission of the required investigative forms, the Vendor POC must ensure the following: All individuals listed on the RAC are fingerprinted within 5 business days after sponsorship in USAccess. If an individual is not able to make an appointment within this timeframe, the vendor will provide documentation to the IRS that an appointment was not available and provide the date of the scheduled appointment. Note to Vendor POC: Sometimes the USAccess email ends up in the contractor employees Spam or Junk Mail and may go unnoticed by the contractor employee. The Vendor POC should remind the contract employee to search their Spam or Junk Mail folders shortly after the RAC is submitted for the USAccess email.

Contractor/subcontractor employees who are invited by PS to complete additional investigative forms in the Electronic Questionnaires for Investigations Processing (e-QIP) system must complete and release the forms in the e-QIP system within 7 calendar days of receipt of invitation.

3.8.1.1.6 Submission Requirements

Submitting a contractor package with missing or incorrect information will delay the on-boarding process. PS will not start the background investigation process until all required documentation is submitted complete and accurate. The Government will reject forms that are incomplete, illegible, inaccurate, and contradict other

forms in the package.

The Vendor POC will send all the required forms by their associated due dates via encrypted e-mail or file transfer to the IRS.

3.8.1.1.7 Contractor Employee Training Requirements

Security Awareness Training is a requirement for IRS contractors (including subcontractors) to be completed within 10 business days of receiving approval of interim staff-like access to any IRS contract and annually thereafter. Contractor must complete the required contractor security training; Security Awareness Training (SAT) Form 14616 and UNAX Form 11370.

3.8.1.1.8 Contractor Employee Separation Contract Requirements

Contract employee separation occurs when a contractor employee is deceased, leaves for another contract/task order, the current contract expires, quits his/her job with the vendor company, cycles off IRS contracts within the vendor company, is removed for the good of the government, or is on extended absence due to military duty, pregnancy, illness, etc. The vendor POC is responsible for notifying PS and the COR within one business day of a contractor separating. This notification may be made at any time prior to the actual separation, but no later than one business day of leaving. If the contractor works on multiple contracts/task orders, notification can be combined, and the COR for each affected contract/task order shall be included on the joint notification.

When separating from the contract, the contractor employee is responsible for securing and returning the following to the COR on or before his/her last day of work on the contract, to include but not limited to:

- IRS-issued badge and/or proxy card
- IRS keys
- IRS- issued laptops
- IRS furnished documents
- IRS passports
- Any and all IRS data
- Any other items furnished or identified by the IRS
- Any other items or materials issued by the Agency for the contract

The return of the items is part of the contract and the IRS will not pay for contractor time to return any of the above listed items.

3.8.1.2 Infrequent and Intermittent Access

All Contractor personnel or sub-Contractors that require access for a one-time event such as a specialty repair or company staff visit shall be authorized by the COR, signed in by the Contractor personnel with IRS “staff-like access” and they shall be escorted throughout their stay in the facility by Contractor personnel with approved “staff-like access” at no additional cost to the government for all basic services requirements. The Contractor is encouraged to limit the number of personnel requiring escort.

3.8.2 Badges

The Government will issue access badges to all Contractor personnel that are granted “staff-like access.” Contractor personnel shall ensure that their badges are visibly displayed on their person at all times while in IRS facilities. The COR will make a determination whether or not to allow contract personnel to take their badges off-site or be checked in and out at the on-site security office based on the most up-to-date local security requirements in effect. The contractor shall follow all local Security procedures at all times unless approved in writing in advance by the COR.

3.8.3 Facility Security

The Contractor shall abide by all facility Security provisions identified in the site Security directives. The Contractor is cautioned that some specific controlled access to “high security” areas such as Executive areas and Information Technology areas within each facility will require a Government escort while performing work at those types of locations. The site-specific Security directives are available in the Technical Library.

3.9 Phase-In and Phase Out

3.9.1 Phase-In Planning/Staffing

The incoming Contractor shall submit a phase-in plan with their proposal that is in sufficient detail to identify all phase-in actions and when they will occur during the phase in period. Training and any contractor staffing proposed to prepare the workforce to assume full operations on the first full day of operational performance of the contract shall be identified in the phase-in plan. Should the incoming contractor include existing contract employees as part of their staffing plan it shall be reflected in the pricing proposal for the phase in period (since the existing contract employees will be paid by the exiting contractor the incoming contractor will not incur labor cost for these employees). During the 60-day phase-in period, the following Contractor’s personnel shall be on-site at the facility location to observe all operations pertinent to the contract requirements for the minimum time shown in the chart below. The phase-in work includes training contract personnel, working on required deliverables, observing office functions, service call procedures, equipment/system operations, maintenance and repairs, CMMS functions and any other operations as deemed necessary by the Contractor. This will enable Contractor personnel to become both knowledgeable in and familiar with their assigned areas of responsibility. The following positions shall be filled, and the individuals shall be on-site prior to the contract start date as follows:

Person Performing the Function Of	Calendar Days Prior to Full Operational Start (Days)
Project Manager	60
CMMS Administrator	60
Supervisors (foreman level)	30
Electrician	30
HVAC Mechanic	30
Maintenance Mechanic	15
Custodial Supervisor	30
Custodian	15

During the Phase-In Period, the incoming Contractor shall become familiar with the Government furnished CMMS. Any deficiencies discovered in the CMMS data during the phase in period shall be brought to the attention of the COR immediately. The Contractor shall train their personnel on the CMMS and become familiar with the performance of any required data entry and user defined reports for a completely functional system capable of meeting preventive maintenance, service calls, custodial, and all other related contract requirements during the 60-day phase-in period. This system shall be inspected during the initial on-site, joint, Existing Deficiency Inspection and all deficiencies shall be jointly identified. Repairs and corrective actions shall be handled in accordance with the procedures outlined below for all other repairs identified as part of the existing deficiency report. All deficiencies on this system that are identified shall be corrected before the contract performance period begins.

3.9.2 Existing Deficiencies Inspection

The purpose of this inspection shall be to discover and document any existing deficiencies that may exist in the equipment and systems covered by this contract prior to the contract start date. A deficiency is defined as any condition that requires repairs to bring the equipment or system back up to design operating parameters. The incoming Contractor shall be reimbursed for all costs over \$500 per individual repair task. If, during the course of the inspection process, a condition is observed that the Contractor contends is a deficiency, but the Government contends is not a deficiency, the Contracting Officer will make the final decision after both sides have presented sufficient detailed information. Any disputed deficiency shall be identified in the report. The Government reserves the right to issue service calls as part of the Basic Services for the correction of any existing condition with a cost of less than \$500 in labor and materials. The Contractor shall provide a monthly report updating the status of each deficiency discovered during the existing phase-in inspection until all deficiencies are corrected and inspected and accepted by the Government.

3.9.2.1 Inspection Process

The incoming Contractor or his designee(s) and the IRS CO/COR shall together make a complete and systematic initial inspection of all building equipment and systems to be maintained under the terms of this

contract on a mutually agreeable date during the first 5 days of the phase-in period. This inspection will include but is not limited to all mechanical, electrical, plumbing and utility systems and equipment, windows, doors and any other system or structural features requiring maintenance and repair under the requirements of this contract.

3.9.2.2 Equip. Disassembly/Reassembly for Inspection Purpose

If during the inspection, the Contractor wishes to disassemble a piece of equipment in order to inspect its internal condition, the COR shall be notified, and arrangements made in order to accommodate the Contractor. Any such internal inspection of equipment items or systems shall be accomplished solely at the Contractor's expense. If, during the disassembly or re-assembly of such an equipment item or system, any damage is done to the equipment, system or auxiliary equipment/piping/controls/etc., such damage shall be repaired at the Contractor's expense and the item or system returned to its pre-disassembled condition. If any deficiencies are noted during the performance of such an internal inspection, the deficiencies shall be appropriately noted on the inspection report and the equipment item reassembled to its pre-disassembled condition at the Contractor's expense.

3.9.3 Inspection Documentation

The incoming Contractor or his/her designee(s) and the COR shall prepare an Existing Deficiency Report jointly while the inspection is being conducted. The Contractor shall be responsible for providing the COR with a final signed report in a format approved by the COR (format approved before the inspection takes place). The final report shall list all deficiencies noted during the joint inspection. Each individual deficiency shall be listed separately with an associated estimated cost to abate each deficiency. Each deficiency line item completed shall be initialed by the aforesaid representatives of both parties and each party shall retain one executed copy.

The Contractor shall prepare and submit to the COR, a copy of the Existing Deficiency Report with an attached listing of the repairs needed to correct each deficiency. The report shall be provided to the COR within two weeks of the performance of the inspection and shall be time/date stamped when turned over to the COR. If it is not presented to the COR within this timeframe, it will be null and void and there will be no existing deficiency inspection report and the contractor will be responsible for any deficiencies up to the \$3,000-dollar threshold for repairs. The list shall include the Contractor's estimated price (including but not limited to, labor, materials and/or subcontract costs) for correcting each deficiency. All prices shall remain firm for a period of 60 calendar days after submission.

3.9.4 Correction of Deficiencies

The Government may order corrections of existing repair deficiencies estimated to cost over \$500 per individual repair (discovered during the phase-in) as additional work as described in the Additional Services Section (Paragraph 4.1.2). The Government may elect to have any or all this work performed by this Contractor at the price quoted as ADDITIONAL SERVICES task orders or by other Contractors and or other means. The Contractor shall provide a monthly update report to the COR on the status of all cited deficiencies until such time as all deficiencies have been abated.

3.9.5 Responsibility for Normal Operations and Maintenance

The incoming Contractor shall assume full responsibility for normal operations and maintenance of all building systems and equipment whether they are included on the deficiency report or not at the beginning of

the base performance period. The Contractor shall immediately bring to the attention of the COR during the joint inspection any systems or equipment that are considered inoperable and thus it is deemed impossible to provide normal operations and maintenance on such systems and/or equipment. Subsequently, when the Government has corrected an inoperable deficiency listed in the Existing Deficiency Report, the Contractor shall assume full responsibility of the equipment. Any and all deficiencies that are discovered after the contract start date shall be assumed to be conditions that developed after the contract start date and therefore, shall not be deemed a "pre-existing" condition and thus the Contractor shall be responsible for all such repairs in accordance with this statement of work. Nothing in this Existing Deficiency requirement shall be construed as diminishing the obligations imposed by this contract upon the Contractor to operate any deficient item to the maximum extent operable or to maintain any such item until such time as the Government corrects the deficiency.

3.9.6 Contract Start

The Contractor shall assume full responsibility for normal operations and maintenance of all building systems and equipment at the beginning of the base performance period. Hence, the Contractor shall provide a work force that is fully qualified and capable of performing all work required under this contract at that time.

3.9.7 Phase-Out

During the 120-calendar day period immediately prior to the end of the contract (if the Contractor is not awarded the subsequent contract for this service), the outgoing Contractor shall permit the incoming Contractor and the Contractor's employees to observe and become familiar with all operations under the contract. The Contractor shall prepare and submit to the COR any changes to the Phase-out plan submitted as part of the original proposal. The outgoing Contractor shall not defer any needed repairs or maintenance for the purpose of transferring responsibility to the incoming Contractor. The outgoing Contractor shall fully cooperate with the incoming Contractor and the Government so as not to interfere with their work or duties.

3.9.7.1 Contract Close-Out Inspection

On a date not later than sixty (60) calendar days prior to the expiration of the contract, the COR and the outgoing Contractor shall make a complete and systematic joint inspection of the Contractor's areas, Government furnished equipment, mechanical rooms and building systems and equipment covered by this contract. The COR and the Contractor shall identify all deficiencies other than normal wear and tear that need to be corrected by the Contractor before the expiration of this contract. The Contractor shall ensure that these areas/equipment/mechanical rooms are in a condition equal to or better than when the Contractor began this contract.

3.9.7.2 Inspection Documentation

The outgoing Contractor shall submit a copy of the final inspection report (signed by both parties); with attachments listing all required repairs to be completed by the Contractor, not less than 30 calendar days before the expiration of the final contract period. However, the COR may require the Contractor to make certain repairs immediately, on items that are deemed by the COR to be urgent in nature.

3.9.7.3 Deficiency Correction

The outgoing Contractor shall correct all the cited deficiencies noted in the Close-Out Report before the

expiration of this contract. Final payment to the Contractor may be withheld until all cited deficiencies are corrected or deductions may be taken from the final payment if deficiency corrections are not completed.

3.10 Quality Control Plan (QCP)

The Contractor shall establish a Quality Control Plan (QCP) to assure that all contract requirements are satisfied as specified. As part of the proposal to the solicitation, the Contractor shall submit a copy of their QCP. The QCP shall be a proactive plan for identifying and correcting deficiencies in the quality of services before the level of performance becomes unacceptable and/or the Government quality assurance inspectors point out the deficiencies. The Contractor shall execute an annual review and update of their QCP to reflect all changing quality control issues that need to be addressed. This QCP is of paramount importance.

3.10.1 Inspection System

The Contractor shall maintain an up-to-date QCP throughout the term of this contract that is acceptable to the COR. The program shall include but is not limited to an inspection system which is tailored to the specific building(s) and equipment covered under the terms of this contract and which covers all services specified herein. The Contractor shall devise a monthly inspection process as part of the QCP that identifies the percentage of monthly service calls and preventative maintenance work orders that will be inspected. Failure to perform these inspections could result in a contract deduction being taken on the monthly QASP.

3.10.2 QPC Personnel

During the phase-in period, the Contractor shall identify all on-site personnel who will be performing routine QCP inspections by name, title and type of inspection each is authorized to perform. All QCP inspections shall be performed by supervisory personnel or work leaders.

3.10.3 Annual Executive Quality Control (QC) Inspection

The Contractor shall perform an annual Quality Control Inspection of the Contractor operations during the base year and every option year thereafter. The inspection shall take place during the 6th month of each contract annual period. The annual QC inspection shall be performed by the program manager at least one level above the on-site project manager. A report of the findings from the program manager shall be provided to the COR along with proposed corrective actions, not later than 15 days after completion of each annual inspection. Failure to perform this in a timely manner could result in contract deductions being taken as part of the monthly QASP.

3.10.4 QCP Documentation

A local file of all inspections conducted by the on-site Contractor personnel including corrective action taken shall be maintained on-site by the Contractor throughout the term of this contract. The inspection document format shall be approved by the COR during the phase-in period, but must contain as a minimum the technicians name, work order number, date of inspection, inspectors name, and a grade based on factors such as timeliness, quality of work, cleanliness of work site, and work order documentation quality. A copy of every QCP inspection shall be given to the COR within 1 calendar day of the inspection (the contractor shall time/date stamp each copy when it is turned over to the COR) and all original hard copy QCP inspections

shall be kept by the contractor in an orderly filing system and available for review by the COR at any time for the duration of this contract.

3.11 Government Quality Assurance Plan (QAP)

The Government will use the quality standards for each task as outlined on the Performance Requirements Summary Table (PRST) for inspecting all contractor work. The Government's inspection plan is outlined in the Quality Assurance Surveillance Plan (QASP, TE-15).

3.11.1 Quality Assurance Surveillance Plan (QASP)

The QASP is designed to provide the Government with an effective surveillance method of monitoring and evaluating the Contractor's performance under this Performance Work Statement for operations and maintenance and related services. TE-15 is the QASP the Government will be using for this contract.

3.11.2 Re-Work for Substandard Work

All substandard work will be returned to the contractor for corrective actions if time permits. If time permits, the contractor will immediately correct the deficiency that the IRS inspector noted on the re-work request. Upon completion of the re-work the IRS will re-inspect the substandard work to ensure it was corrected. If time doesn't permit rework, it will be recorded as failed and used to determine the degree of deviation from the requirement provided by the contractor for that month. If the service is still required, the contractor will create a new work order to correct the deficiency. All steps of this process will be documented in the IRS CMMS.

3.11.3 Failure to Perform Scheduled Tasks

If the contractor fails to perform any required task and no deferral was requested or approved, it will be recorded as a failure in the CMMS and used in determining the degree of deviation from the requirement for that corresponding line item on the PRST. The contractor will be expected to perform the task the following month if the frequency of the scheduled task is less frequent than monthly (example: quarterly, semi-annual, annual, etc.). If its frequency is monthly or more often (example: weekly, bi-weekly, monthly) it will already be scheduled in the CMMS for the next month so the task cannot be made up late since it is already due again. Continued failure to perform the task will result in the IRS hiring another contractor to perform the task and deducting the cost from the contractor's monthly payment.

3.11.4 Degree of Deviation from Requirement and Deduction Calculation

Outlined in the TE-15; the Degree of Deviation from the requirements will be determined for each line item in the Performance Requirements Summary Table (PRST) by dividing the total number of failures by the total number of inspections associated with that line item.

Example:

10 failures
-----=.1, or 10% Degree of Deviation from requirement

100 inspections

If the degree of deviation is greater than the AQL allowance on the PRST, a contract deduction may occur. Deductions will be calculated based on the percentage of the **Portion of Required Services to Total contract Price in Column 6** of the PRST. The dollar value of the percentage in **Column 6** will be multiplied by the percentage of deviation for each line item in the PRST to calculate the required deductions.

3.11.5 Additional Government QAP Actions

As part of the Government's quality assurance plan, the Government may:

1. Review, and if warranted, reject any reports or other submittals required from the Contractor.
2. Review performance and service records, including but not limited to Monthly Progress Reports, BAS data, CMMS data and any computerized or hardcopy records maintained by the Contractor, documenting performance under this contract and require correction of any unsatisfactory conditions noted.
3. Review the adequacy of the Contractor's quality control program and documentation and the success of this program. Improvements may be directed by the COR if the program is determined to be insufficient or ineffective.
4. Make physical inspection of facility equipment and systems, mechanical and electrical rooms, to include programs and files maintained on Contractor's computers and in Contractor on-site offices and work areas and require correction of deficiencies noted.
5. Perform inspections with Government personnel or independent third-party inspectors.

Contractor performance will be evaluated based on the performance success or deficiencies, success or failure in meeting other contract requirements and the Contractor's record of correcting deficiencies when noted. While corrective actions will be noted, a record of significant performance deficiencies may lead to a performance evaluation that is less than satisfactory even if the Contractor takes corrective action.

The use or non-use of any Quality Assurance methods (e.g., a Measurement and Verification (M&V) program) by the Government will not constitute a waiver of or excuse from contract requirements. The Government may implement or change Quality Assurance measures at any time during the term of the contract.

All records and files that this contract requires the Contractor to maintain shall be made readily accessible to Government representatives, including third-party contract inspectors, upon request. All records and files utilized or generated during the course of the contract by the Contractor including all standard operating procedures and Building Operating Plans, shall become the property of the Government (excludes employee personnel files or company financial information).

The Contractor shall instruct all on-site personnel to cooperate with the Government or third-party contract inspector requests for records access or information, to include answering all questions related to performance of work, honestly and comprehensively.

The Contractor shall provide personnel during normal working hours and for after-hours access, to inspectors, including third-party contract inspectors, to open and operate equipment for the observation of such inspectors, at no additional cost to the Government so long as the Government requests the service at least 48 hours in advance and so long as after-hours access and operation of equipment is only requested for

testing reasonably necessary to be performed after hours to avoid possible disruption to tenants.

3.11.6 Government Inspection Timeframes

The following notification timeframes shall be followed by the IRS COR's and MWI's:

- a) PM tickets: "within 5 workdays after input of the completed work order into the CMMS by the contractor."
- b) Service Call tickets: "within 2 workdays after input of the completed work order into the CMMS by the contractor."
- c) ADDITIONAL SERVICES final inspections: "within 5 workdays after receipt of the contractors email notice of work being completed."

3.12 Contingency Plans

The Contractor shall submit with his proposal, a contingency plan that addresses how the Contractor will mitigate the planned and unplanned events and situations described below. The plan shall describe the response (both initial and subsequent) to the situation to assure continued operations, identify the potential resource requirements, identify how additional resources will be obtained and describe the processes or approaches of communication and coordination needed with the Government regarding.

1. Recruitment and hiring difficulties,
2. Strikes by employees and/or Sub-Contractors used in support of the PWS,
3. Natural and man-made disasters,
4. Adverse weather conditions.

3.13 Required Reports and Submittals

The Contractor shall submit the data, reports, schedules, plans and items identified in Technical Exhibit TE-6 to the COR for approval and/or action as applicable, no later than the dates specified therein. In addition, the Contractor shall submit a Monthly Accomplishments (Progress) Report that includes the data as shown in TE-6 by the 3rd calendar day of the month following the performance period. All annual submittals and/or deliverables required shall be provided to the COR in hard and electronic format during the first 45 calendar days of each new option period.

3.14 Partnering

The Government intends to encourage the foundation of a cohesive partnership with the Contractor. The partnership will be structured to draw on the strengths of each organization to identify and achieve reciprocal goals. The objectives are effective and efficient contract performance, on schedule, customer-focused service and in accordance with the contract documents. This partnership will be multilateral. Any costs associated with effectuating this partnership (time of the attending personnel, cost of transportation and lodging) will be borne by each project partner for their firm with no change in contract price. The cost of partnering meetings, including the facilitator, meeting room, supplies, etc., will be borne by the IRS. A one-day kick-off-partnering meeting will be held during the first 30 days of the phase-in period. The kick-off meeting will culminate in the development and establishment of a mutually satisfactory set of goals and objectives

beneficial to all team members. All Contract goals and objectives shall be mutually agreed to in writing by the Contractor and Government. Minutes of the kick-off meeting shall be documented by the Contractor (provide to the COR within 5 calendar days) and reviewed and approved by the Government Contracting Officer/COR. In addition, an annual partnership meeting shall be held at the 6-month mark of each contract year that the contract is in effect (this shall coincide with the Annual Executive Quality Control Inspection, see section 3.11.3). The annual meeting shall be held at the contract site and shall be attended by all key local and HQ's personnel from the Contractor and appropriate Government management and contract administration officials. Minutes of the Annual Partnership meeting shall be documented by the Contractor (provided to the COR within 5 calendar days) and reviewed and approved by the Government Contracting Officer/COR. Weekly on-site progress meetings will also be held throughout the duration of the contract to discuss progress in meeting current goals, contract performance, status of ADDITIONAL SERVICES projects, and other contract related issues. As a minimum, the COR and Contractor Project Manager shall attend these meetings. Weekly meeting minutes shall be documented by the contractor and reviewed by the COR.

3.15 Warranties

A list of warranties in effect will be provided to the Contractor during the phase-in period. The Contractor shall serve as the POC and coordinate all building and equipment related warranty issues. The Contractor will ensure new warranties obtained while in performance of this contract are placed in the name of the Government to ensure that the warranty (where applicable), extends beyond the term of the contract with the Contractor. The Contractor shall be fully responsible to execute all existing and new warranties that are building related and to keep the Government advised in writing of any warranty issues in dispute by the manufacturer. If the Contractor has difficulties in enforcing warranties with a specific manufacturer, the COR will attempt to help the Contractor resolve disputes with the manufacturer. Should the Contractor's action nullify a warranty, the Contractor shall assume responsibility for all systems, equipment and related work until the warranty expires. If the actions of the Contractor nullify a warranty that would have extended beyond the term of the contract with the Contractor, the Contractor is responsible for all costs associated with restoring the original warranty with the manufacturer or providing an acceptable alternative warranty with a third party. The third-party warranty must be sufficient to offset the loss of the original warranty.

3.16 Computerized Maintenance Management Systems (CMMS)

The Government will provide the Contractor access to the Government's CMMS system upon an approved security clearance. The contract shall effectively use the CMMS to accurately track and document all contract activities and deliverables regarding operations and maintenance. The Contractor shall be responsible for the data entry and accuracy of all information inputted into the CMMS database.

3.17 As-Built Drawings

When the Contractor is provided plans or drawings as part of a Service Call or Task Order, the Contractor shall be responsible for providing one copy of marked up "red line" drawings to the COR, reflecting the changes due to the Contractor's efforts. The Contractor shall provide these drawing mark-ups under the Firm Fixed-Price portion of the contract. These drawings shall be submitted prior to closing out the Service Call or prior to submittal of the Contractor's invoice in the case of an ADDITIONAL SERVICES Task Order

3.18 Work Performance, Coordination and Scheduling

The Contractor shall schedule and arrange work to cause no interference with the normal occurrence of Government operations without advance approval, in writing from the COR. In those cases where some interference may be essentially unavoidable, the Contractor shall work with the COR to minimize any impacts on Government operations and shall provide a written plan of action to the COR for approval detailing how the impact of the interference, inconvenience or customer discomfort will be minimized. During emergency situations, the COR may grant verbal approval for work to proceed, and it will be followed up in writing within 24 hours.

3.18.1 Routine Work Coordination

For routine work and additional services, the Contractor shall notify the COR, customer and coordinate a time period for performing the work a minimum of 24 hours prior to the desired start of work that will cause minor disruptions to customers (i.e., minor power outages, loss of heat or cooling for a short duration, dust, noise). The request must be approved in writing (email) by the COR before any action is taken that would disrupt any Government operations.

3.18.2 Facility Outages Coordination

Certain preventive maintenance and certifications require a complete facility power outage and total disruption of work to the Government. These outages are normally scheduled for one or more Holiday weekends. The Contractor shall work with the COR to schedule the proper holiday weekend for the power outage. The Contractor shall provide a written Outage Plan to the COR specifying all PM and repair work to be performed during the outage and the responsible party who will be performing each activity for the COR to review and approve at least 60 days prior to the scheduled outage. The work shall not begin nor be performed without the prior written approval of the COR. The holiday weekend for the annual power outage can change from year to year and the contractor will reschedule all work in the CMMS, perform the work and/or coordinate with subcontractors as required to perform the work on the new date at no additional cost to the government.

3.19 Reserved

4. ADDITIONAL SERVICES

The Contractor shall provide a comprehensive Additional Services Program with their proposal that addresses how they plan to achieve all the requirements of the PWS under section 4.

4.1 Types of Additional Services

4.1.1 Repair Requirements (Service Call Work) Exceeding \$3,000

a. Work includes labor, materials, subcontracts and specialized equipment to complete repair service calls when the cost for the service call exceeds \$3,000 for each individual repair task. The Contractor will be paid a negotiated fixed price for the amount over \$3,000 for each Task Order. |

b. For requirements initiated by the Government to replace defective or obsolete equipment, systems, or building infrastructure, the \$3,000 threshold shall not apply. In such cases, the Contractor shall be paid

a negotiated fixed price for the full amount of the ADDITIONAL SERVICES task order up to the maximum order limitation of \$500,000.

The Government COR reserves the right to make the final determination of when a piece of equipment, system, or building infrastructure needs to be replaced instead of repaired or when it needs to be replaced to avoid future repairs or down time. When a decision has been made by the Government that replacement is necessary, the COR will request an ADDITIONAL SERVICES proposal from the contractor to affect the replacement.

4.1.2 Correction of Deficiencies Identified During the Phase-In Inspections

Work includes labor, materials, subcontracts and specialized equipment to complete repair deficiencies identified during the phase-in inspection. The Contractor will be paid a negotiated fixed price for all costs exceeding \$500 for each individual repair.

4.1.3 New Project Work

The Contractor shall provide all supervision, labor, materials, and equipment and/or subcontract services to accomplish ADDITIONAL SERVICES task orders as initiated by the Government. This includes but is not limited to building infrastructure upgrades and construction activities as follows: new electrical, mechanical, plumbing and HVAC system modifications, building equipment replacements, painting, building structural and carpentry enhancements and any other building/construction related services as may be requested by the COR. The Contractor will be paid a negotiated fixed price for all costs associated with each task order for New Project Work up to the maximum order limitation of \$500,000 per task order.

4.1.4 Snow Hauling

As directed by the COR, the Contractor shall obtain three quotes from qualified subcontractors to either haul excess snow to a remote area of the grounds or to an off-site location. All snow hauling services shall have prior approval from the COR before any hauling services are undertaken by the Contractor. All associated contractor cost and allowable mark ups for completing the ADDITIONAL SERVICES task order must be included in the cost proposal.

4.2 Emergency Additional Service

Emergency ADDITIONAL SERVICES work is critical in nature and only requires verbal approval from the CO. The contractor shall coordinate all activities to complete the work and follow up with a complete proposal that includes all invoices and required documentation to support all cost in the proposal as soon as the situation is resolved.

4.3 Cost Proposals for Other Than Emergencies

The Contractor shall plan and oversee all ADDITIONAL SERVICES work and prepare complete proposal development activities in support of additional services requirements as part of the basic services fixed-price portion of this contract. Each request for proposal will be in the form of an e-mail issued to the Contractor. Each proposal shall be valid for a minimum of 60 calendar days from the proposal submission date to the Task Order issue date. All ADDITIONAL SERVICES work will require three Sub-Contractor quotes to be obtained and the lowest one used as the estimate in the cost proposal unless directed otherwise by the CO/COR. In unusual

circumstances, with agreement of the CO/COR, the Contractor may provide less than three quotes (must be justified in writing by the Contractor and approved by the CO/COR). All original quotations from Sub-Contractors must be included with all Contractor task order proposals submitted to the Government. The contractor shall be responsible for the escorting of contractors without “staff-like access” for each additional service if requested by the COR. The additional service escorting cost shall be an additional cost included in the additional service proposal and the contractor shall use the lowest wage employee for escorting. If the contractor’s escorting employees with “staff like access” are outlined in the approved staffing plan and schedule, the labor cost cannot be billed to the government. The government already pays for the required approved staffing plan labor under basic services. All associated contractor cost and allowable mark ups for completing the ADDITIONAL SERVICES task order must be included in the cost proposal. The Contractor may consider and propose cost/technical tradeoffs as part of the selection and negotiation process for Sub-Contractor services acquired under the additional services provisions of this PWS. The Contractor shall state the rationale for all tradeoff recommendations. However, the final decision as to whether to select a higher bid due to a recommended tradeoff rests solely with the Government. If the Government deems that Contractor quotes are incomplete and/or not a fair and reasonable price, the Government reserves the right to request additional quotes from the Contractor on a case-by-case basis and/or acquire services by other means. Unless the service request is deemed an emergency by the Government, the Contractor may not commence with the effort until negotiations are completed.

The Contractor shall provide written recommendations for revisions, alternative methods, or for any deviations from the Government's original scope of work as described in the task order. Any Contractor's recommendations shall be narrative descriptions, drawings or sketches and shall include references to technical specification requirements. The CO will review the recommendations and will approve or disapprove in whole or in part, for use in the execution of work. The CO and the Contractor will negotiate a fair and reasonable price for all ADDITIONAL SERVICES task orders. If the cost proposal is in dispute and no satisfactory agreement can be reached between the Government CO and the Contractor, the CO will make the final determination of all costs required to complete the task and may direct the Contractor to perform the work while negotiations proceed. If the CO and the Contractor are still unable to reach agreement on the task scope of work, terms, conditions, schedule and/or price and the work has been completed, the Contractor may opt to seek reimbursement for services rendered through the dispute’s clause of this contract (See FAR 52.233-1 Disputes). The Government reserves the right to cancel the request for proposal or procure the services from other sources at any time. All ordered additional services shall be scheduled and completed within the allowable completion time (calendar days) established during negotiations. The Contractor shall, within 3 calendar days of receipt of an approved task order, submit a detailed schedule in accordance with the negotiated time frame in the approved Government issued ADDITIONAL SERVICES task order. The schedule shall identify all critical milestones. The COR may waive the requirement for a schedule for simple projects, however, a completion date must still be a part of the proposal. If work cannot be accomplished due to circumstances beyond the Contractor’s control, the Contractor shall request a schedule extension as soon as the need for an extension becomes apparent. Upon review of this request, the CO may extend the completion date of the Task Order to allow a reasonable amount of time for completion if warranted. Unless otherwise specified by the COR, the Contractor shall submit all proposals within the following time frames as shown below:

Priority of Request	Required Submittal of Contractor Proposal (Calendar Days)
Urgent	5

Routine	15
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4.4 Consequences of Failure to Provide Cost Proposals

Failure of the Contractor to provide cost proposals on a timely basis (as stated in paragraph 4.3) may result in the Government using separate acquisition methods to provide these services and/or execute contract deductions from the Contractors monthly payment.

4.5 Changes to the Scope of Work for Task Orders

If during the course of work, the Contractor encounters unforeseen conditions which impact the work and which could not have been foreseen during the initial proposal development, the Contractor shall contact the CO and COR immediately and shall not proceed without Contracting Officer authorization. The CO will direct the Contractor to (1) estimate the change of scope for the unforeseen condition only or (2) prepare a new proposal/estimate for the total job as revised. Revisions to schedules shall be negotiated with the CO. The CO will review the estimate and scope of work and (1) issue a modification to the Task Order for the change in scope or (2) cancel the original Task Order and issue a new Task Order for the total job as revised. If the CO directs the Contractor to stop work, the Contractor shall clean and secure the work site.

4.6 Reports

The Contractor shall use the CMMS to document all ADDITIONAL SERVICES task orders. The Contractor shall provide a monthly report to the COR that summarizes the status of all outstanding ADDITIONAL SERVICES task orders as part of the monthly progress report. The report is due by the 7th day of the next month (ex. January's report is due by February 7th). This includes all quotes that have been requested by the Government as well as all open ADDITIONAL SERVICES task orders that have been awarded or closed during the month. The report shall include:

- Building number(s) for work,
- Brief description of Work to be performed,
- Task Order number,
- Completion Date Required,
- Completion Date Anticipated,
- % Complete,
- Project Status,
- Remarks.

5. GOVERNMENT FURNISHED ITEMS

5.1 Government Furnished Space

The Government will provide the space shown in Technical Exhibit TE-7. The space shall be for the

exclusive use of the Contractor to perform work associated with this contract.

5.1.1 Keys to Government Facilities

The Contractor will be given keys and combinations to the facilities' locks to facilitate performance of work. The Contractor shall establish a key control system to ensure that no keys issued to the Contractor by the Government are lost, misplaced or used by unauthorized persons. Government keys shall not be duplicated by the Contractor without the COR's authorization. The Contractor shall report to the COR any occurrence of a lost key within one hour of discovery of the loss.

5.1.2 Authorized Use and Access to Spaces

The Contractor shall prohibit the use of Government-issued keys by any person other than authorized Contractor employees. The Contractor shall not permit entrance to locked areas of any person other than Contractor personnel engaged in the performance of work in those areas or personnel assigned to the activity where the Contractor is performing work, without written authorization by the COR.

5.1.3 Technical Publications

The Government will provide all currently available technical manuals and bulletins associated with the installed equipment. The Contractor shall maintain a comprehensive reference library that includes building design or record documents, renovation or equipment retrofit design or maintenance reference documents, fire protection system as-built drawings, fire protection system operations and maintenance manual with copies of approved submittals, fire protection system parts list, fire protection system zoning scheme, the HVAC Operations Manual (if one has been developed), the Building Operating Plan, Energy and other building technical studies, hazardous materials surveys and other documents necessary to document the design, function and condition of the building. All materials maintained in the library are the property of the Government in the event of contract termination and/or completion and shall be available for reference and review during the course of contract performance.

5.2 Government Furnished Materials (GFM)

The Government will furnish or make available to the Contractor, on a one-time basis, the material of the types and in the approximate quantities listed in Technical Exhibit TE-7. At the end of Base Period and after each option period exercised by the Government, the Contractor shall document and certify that the GFM inventories are equal to the original quantities. The Contractor's shall update the inventory of GFM, 30 days before the contract expiration date. Upon contract expiration, all GFM shall be returned to the Government in like qualities and quantities in original condition.

5.2.1 Material Inventory

The on-hand GFM listed in TE-7 will be made available to the Contractor. The Contractor and the COR shall conduct a joint inventory during the phase-in period to verify the exact amount of the GFM. The Contractor shall then certify the findings of this inventory, provide a signed copy of the inventory to the COR before the official contract start date and then assume accounting responsibility for all materials supplied and shall replace in kind (at Contractor's cost) all items used. Fifteen (15) days prior to the completion or termination of this contract, a second joint inventory shall be conducted to ensure replacement of all GFM has occurred.

The Contractor shall be held liable for all missing materials and a deduction on the final monthly payment may be taken if all GFM is not accounted for.

5.3 Government Furnished Equipment (GFE)

The Government will furnish or make available to the Contractor, the equipment of the types, in "As-Is" condition and in the quantities listed in Technical Exhibits TE-7. The Contractor shall maintain and repair such equipment to ensure that it remains in proper and reliable operating condition. At the close of the contract performance period, the Contractor shall return equipment of like type and quantity, less fair wear and tear, to the Government.

5.3.1 Office Furnishing, Minor Tools and Shop Fixtures

The Government may provide limited office furnishings. No inventory will be provided. However, the offerors are encouraged to make note of the items in use during the on-site visit identified in Section L.

5.3.2 Use of Government Property

Should the Contractor choose to use the GFE, periodic servicing, maintenance and repair of the equipment and tools listed shall be provided at no cost to the Government. During execution of the work, the Contractor shall protect Government property from damage. The Contractor shall repair or replace as applicable, any damage to Government property resulting from work performed under this contract at no cost to the Government. The Contractor shall repair damage to Government property resulting from operational errors or failure to maintain, repair or inspect equipment as required under this contract at no cost to the Government. The total or partial breakdown or failure of the GFE shall not relieve the Contractor of responsibility to fully perform the work of the contract. Upon completion or termination of the contract, all GFE shall be returned to the Government in the same condition as received, except for normal wear and tear. Equipment which becomes worn out due to normal wear and tear shall also be returned to the Government. At that point the Contractor will be required to furnish the equipment as the government will not replace any GFM or GFE during the contract period that becomes inoperable or unusable due to normal wear and tear.

5.3.3 Equipment Inventory

The Contractor and the COR shall conduct a joint inventory during the phase-in period to determine the exact number and serviceability of GFE. The Contractor shall then certify the findings of this inventory, provide a signed copy of the inventory to the COR before the official contract start date and then assume accounting responsibility and subsequently report inventory discrepancies to the COR. GFE shall not be removed from the facility unless approved by the Contracting Officer in writing.

5.3.4 Computers

Computer workstations with network connections, appropriate interface with the CMMS and standard Microsoft Office software and printers identified in TE-7 will be made available to the Contractor for use in the performance of this contract. Regardless of the serviceability of the above mentioned GFE, the Contractor shall remain fully responsible for accomplishing all work requirements identified in this contract. The Contractor shall be responsible to furnish all additional equipment as may be required in order to accomplish all contract requirements at no additional cost to the Government.

5.4 Government Provided Services

The Government will provide the following services to the Contractor.

5.4.1 Utilities

Utilities for Government furnished facilities will be provided from existing outlets at no cost to the Contractor. Utilities are limited to electricity, water, heat, air conditioning, local telephone service with access to the local area network, FTS and Internet connectivity (no facsimile line) and sewerage. The telephones, Internet access and Internet connectivity are for official contract use only.

5.4.2 Fuels

The contractor will provide all fuels associated with utilities heating and cooling, emergency generators and fire pumps. The Contractor shall notify the COR in writing when the level of fuel in any tank reaches 50% of full capacity. The Contractor shall be responsible for acceptance of the fuel from Government delivery points and ensuring the safe delivery of the fuel to the applicable item of equipment. When directed by the COR, the Contractor shall test fuels and provide fuel additives as necessary. The Contractor shall provide fuel for Contractor owned vehicles.

5.4.3 Housekeeping Services

Limited custodial services will be made available at no cost to the Contractor. Custodial services provided include cleaning and stocking of restrooms and floor cleaning and trash removal of the main office area. No other services are provided.

5.4.4 Grounds Maintenance and Refuse Removal

The Government will provide grounds maintenance. All refuse removal services will be provided by the Government with the exception of the removal of hazardous waste generated by the Contractor.

5.4.5 Security and Fire Protection

The Government will provide security police and fire protection to the extent necessary to ensure security and safety.

6. CONTRACTOR PROVIDED ITEMS

The Contractor shall furnish all supplies, materials, tools, equipment, and utility/work vehicles needed for routine, urgent and emergency response requirements to support the performance of the work required by the contract unless otherwise specified herein.

6.1 Materials

The Contractor shall provide items required to maintain the structures, equipment, systems and subsystems

covered by the contract in a functional state. Any replacement part used during the course of the contract shall be the identical make and model of the part being replaced. If the identical part is no longer available, a comparable replacement part may be used if approved by the COR. This approval shall be received prior to the installation of the replacement part. The Contractor shall maintain a stock of expendable supply items on site or arrange for delivery of supply items such that performance of contract services is not delayed. Lack of available expendable parts or material shall not be cause for authorization of delays in completing repairs or services. All MSDS/SDS associated with materials shall be maintained on-site and made available to the COR upon request.

6.2 Communication Equipment

The Contractor shall arrange for the installation, at their expense, additional private outside business phone line(s), including instruments, for use in making business and personal calls outside the building and for Internet services. All communications equipment shall be provided by the Contractor such as telephones, pagers, cell phones, etc. to provide communications between the government (COR and security after hours) and contractor personnel (shift supervisors) and the project manager 24/7, 365 days a year.

6.3 Drawings

Any and all drawings and/or schematics developed by the Contractor for any of the equipment, systems or subsystems covered by the contract shall become the property of the Government, a reproducible copy of which shall be supplied to the COR upon completion. In addition, the Contractor shall update ("red line") current Government facility drawings to reflect any changes resulting from work accomplished by the Contractor during the course of this contract.

6.4 Personal Protective Equipment

The Contractor shall supply proper employee protective clothing, footwear, gloves, head gear, ear plugs, safety eye wear (not prescription lenses), etc., as required for the maintenance tasks required under this contract.

6.5 Uniform

The Contractor shall ensure that all employees wear the required uniforms (shirt, long pants) with the Contractor's and employee's name permanently attached to the shirt. Uniforms (color and type) shall be approved by the COR. All Contractor personnel performing under the contract shall wear the approved uniforms at all times while on duty. The only exception to this requirement is the Project Manager who may wear normal business attire in lieu of a uniform. Additionally, these uniforms shall be worn in a manner that they present a clean and neat appearance at the beginning of each workday.

6.6 Warranty of Services

The Contractor shall warrant all workmanship, materials, equipment and services provided under the terms of this contract for a minimum of one year or the manufacturer's period of warranty, whichever is longer, from the date of Government acceptance of work. Any rework or repair due to poor workmanship will be at the Contractor's expense.

7. CUSTODIAL SERVICES

7.1 General Requirements

The Contractor shall furnish all labor, supplies, supervision, tools, materials, equipment, and transportation necessary to provide custodial services in accordance with this specification. The contractor shall also plan, schedule, coordinate, train, supervise and ensure effective performance and completion of all contract requirements specified herein at this IRS facility. The operating hours of the facility are **24/7/365**. Custodial services apply to the building and the guard booths including, but not limited to, halls, restrooms, offices, work areas, canteens, cafeterias, health unit, childcare, entrance ways, lobbies, storage areas, elevators, stairways, patios, sidewalks, parking lots, outside grounds, and loading docks. The Contractor shall schedule and perform work so as to cause the least interference with the normal operation of the Complex. In those cases where some interference may be unavoidable, the Contractor shall make every effort to minimize the impact. Furniture or other equipment (including waste containers) moved while performing custodial services shall be returned to their original position.

7.2 The Contractor Shall

1. Be responsible to make the management and operational decisions to meet the quality standards required under this contract.
2. Use innovation, technology and other means and methods to develop and perform the most efficient cleaning services for the building.
3. Implement an effective Quality Control Plan (QCP).
4. Implement an effective service call system, as specified under the Special Requirements section of this contract that results in prompt, professional, and courteous resolution of tenant concerns.
5. Keep the COR informed of current status of the work being performed, provide work schedules and provide other pertinent information needed by the COR.
6. Reduce the negative safety and environmental impacts of work performed under this contract by using, to the maximum extent, safe and environmentally sound practices, processes, and products.”
7. Perform in a manner consistent with the IRS Occupational Safety, Health and Environmental Compliance Policy (P-1-28) and applicable safety, health and environmental laws and regulations.
8. Safety Data Sheets (SDSs)

The Contractor shall maintain four (4) separate sets of binders for the SDS. Each set shall contain one (1) binder for the cleaning products and one (1) binder for the pest control products. The Contractor shall maintain one set in the Facilities Manager’s office and the binder shall always be readily accessible to all Contractor personnel. One set of binders

shall be in the supply storage space and two sets of binders shall be submitted to the COR. At all times, the Contractor shall keep all sets of binders up to date to reflect actual products being used or stored on site. Materials or supplies shall not be used in performance under this contract or placed/stored on Government property until the applicable SDS have been submitted to the COR and filed in the appropriate SDS binders.

9. Comply with the provisions of all Executive Orders, governing environment, health and safety that are promulgated and their implementing instruction or its successor to the same extent as the IRS would be required to comply if the IRS performed the contractors' functions.

10. Provide the information needed by the facility to comply with Emergency Planning and Community Right-to-Know Act (EPCRA), Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA), and any other applicable federal, state, and local laws

11. Submit proof of applicable employee environmental, safety and health training including, but not limited to: powered industrial truck training, hazard communication training, emergency response training, fall protection training, electrical safety training, asbestos awareness training, lead-based paint awareness training, hearing conservation training, hazardous waste and universal waste training, blood borne pathogens training, and respiratory protection training. This documentation must be submitted to the COR and approved prior to the notice to proceed. Should the Contractor bring additional employees or sub-contractors on-site, their training documentation shall be submitted to the COR at that time.

A) Personal Protective Equipment

The contractor shall assess potential hazards associated with each type of tasks employees will be performing and provide all contractor personnel with the appropriate personal protective equipment (PPE) required by OSHA or any other state or local laws/regulations including, but not limited to hand, foot and eye protective equipment.

B) Bloodborne Pathogens

The contractor shall comply with OSHA standard 29 CFR 1910.1030 and all other Federal, State and Local regulations for the purpose of providing safety precautions to all of his/her employees who are subject to occupational exposure to potentially infectious blood, body fluids/waste and/or materials as a result of the custodial work performed under this contract. The contractor shall submit a written bloodborne pathogen exposure control program and plan to the COR during the first 30 days of the contract and shall provide training to all employees who have the potential for exposure, adhere to all required safety procedures, maintain equipment and supplies in place from day one in case of an emergency that requires blood or other bodily fluids to be cleaned in the facility. The contractor will maintain, on-site the records of Hepatitis B vaccination or declination by employees per CFR 1910.1030 Appendix A.

C) Emergency Planning and Community Right-to-Know Act (EPCRA)

The contractor shall maintain records of all hazardous materials brought onsite IAW Title 40 CFR Part 370 - Hazardous Chemical Reporting: Community Right-to-know, <https://www.govinfo.gov/content/pkg/CFR-2016-title40-vol30/pdf/CFR-2016-title40-vol30-part370.pdf>. The supporting records shall be maintained for a period of five years for auditing purposes. These records shall include a SDS for each hazardous material as well as the following information:

- Maximum amount of the material onsite on any one day of the year.
- Average amount of the material stored onsite.

- Quantity of material used during the calendar year.
- Type of container used to store the hazardous material.
- Storage location of the hazardous material.
- The contractor shall make MSDS/SDS readily available to any Government or contractor employee who is or may be exposed to the chemical.
- The contractor shall provide information needed by the Federal facility to comply with The Emergency Planning and Community Right-to-Know Act (EPCRA) <https://www.epa.gov/epcra>, Pollution Prevention Act (PPA) <https://www.epa.gov/laws-regulations/summary-pollution-prevention-act> , and Executive Order 13834 Regarding Efficient Federal Operations <https://www.epa.gov/fgc/executive-order-13834-regarding-efficient-federal-operations> .

D) Environmental and Air Emissions

The contractor shall not cause any air emissions that would be subject to environmental permitting or control requirements. The contractor shall control emissions from activities on-site in accordance with the federal, state and local requirements.

The Contractor shall be responsible for all fines, fees, citations, etc., due to negligence that results in environmental or safety related issues.

E) Ammonia Based Products

The Contractor shall not use ammonia or ammonia-based products, in this facility unless written permission is given by the COR.

7.3 Reports/Submittals

The Contractor shall use the IRS Computerized Maintenance Management System (CMMS), Integrated Workplace Management Systems, for managing and documenting all Custodial program accomplishments. The Contractor shall review the existing schedule and custodial assets loaded in the CMMS. The Contractor shall notify the COR in writing (email) of any discrepancies and/or additions/deletions that they recommend be implemented to the existing custodial assets (areas) in the database 7 days in advance of the start of the contract period. All changes to the CMMS database shall be approved (in writing), in advance by the COR before the Contractor makes adjustments to the database or existing schedule upon commencement of the contract or at any time during the contract.

The Contractors PM shall draft a memorandum for COR approval that informs all offices of when they are scheduled for periodic work (work that occurs less frequently than daily, i.e. weekly, monthly, quarterly, etc.). Once approved, the contractor will obtain the COR's signature on the memorandum and is responsible for delivering it to the office where the work will take place at least 5 days before the work commences. For any periodic cleaning in executive office spaces, the PM and/or IRS Inspector shall meet personally with the executive's staff to coordinate the cleaning schedule to ensure no interruptions to those offices. The Government reserves the right to specify days and times certain rooms shall be cleaned. Any areas that require closure while work is performed (i.e. restrooms, canteens, etc.) shall have the closure time clearly posted at the entrance at least 24 hours in advance to give employees fair notice of the closure (for areas that

are cleaned on a regular schedule the times can remain posted for the duration of the contract). Areas that are cleaned on a Daily or Weekly basis shall be cleaned at the same time of day and the same day of the week for the duration of the contract unless directed otherwise by the COR (this will facilitate timely inspections by the IRS staff).

The contractor shall submit an Annual Cleaning Schedule the first month of each contract renewal year. The schedule will outline the contractors:

- 1) Cleaning schedule by shift and brief description of work identified by building areas (i.e. Building 1, 2, 3, 4, 5, Restroom, Entrances, etc.);
- 2) Periodic schedule (Annual, Semi Annual, Monthly, Semi Monthly and Weekly) identifying areas and work to be completed (i.e. carpet shampooing; VCT waxing, etc.) for each;
- 3) Special notes which will identify special conditions.

7.4 Applicable Executive Orders and Regulations

The Contractor's products and services should be in accordance with the guidelines to be issued to implement the Farm Security and Rural Investment Act, Section 9002 of the 2002 Farm Bill.

7.5 Product Requirements & Green Cleaning

To the greatest extent feasible, the Contractor shall use “Biobased” and “Green” products and services. The Contractor shall use green cleaning products and processes and shall demonstrate such capability by submitting a green cleaning plan to the COR that describes methods, materials, and equipment used under the contract. Green cleaning is a planned and organized approach to cleaning that is designed to protect the occupants and workers' health and reduce the impact on human health and the environment. Unlike a traditional cleaning program, a green custodial program takes a holistic approach to building cleaning and goes beyond simple appearances to focus on health and the environmental impacts.

Green cleaning products and processes include, but are not limited to, products containing recycled content, environmentally preferable products and services, vacuum cleaners with HEPA filtration, bio-based products, and products and services that minimize the use of energy, water, and other resources. In addition to compliance with these requirements, the Contractor shall follow all applicable standard industry practices including, but not limited to, those published by the National Institute of Building Sciences (NIBS), American Society of Testing Materials (ASTM), and Carpet and Rug Institute (CRI), as well as applicable standards of the Environmental Protection Agency (EPA).

The Contractor shall take every precaution to ensure that if available, only safe and environmentally preferable products are used. Preference shall be given to cleaning products that meet the following: United States Department of Agriculture (USDA) - designated bio-based products, Green Seal Certified Products, Comprehensive Procurement Guidelines (CPG), and/or applicable Executive Orders.

The success of the green program hinges on the principles of stewardship. Stewardship is the shared responsibility for everyone working together to improve human health and the environment through the Government's cleaning program. The Contractor shall develop stewardship activities that help educate

building occupants and present them to the COR. Information on stewardship, training plan, and other issues can be found in ASTM E1971-98, Standard Guide on Stewardship for Cleaning Commercial and Institutional Buildings.

The contractor shall obtain COR approval prior to using or purchasing any supplies, equipment or material for the facility. For consumables (e.g., hand soap, paper towels, body shampoo, hand sanitizer, toilet paper, toilet seat covers, bad air sponges, etc.), the contractor shall submit a list of supplies and materials and samples for approval to the COR prior to placement for use (the list shall be submitted 5 days prior to the start of the contract and consist of the name of the manufacturer, the brand name, and intended use of each of the supplies and materials). The contractor is encouraged to bring any industry improvements to the COR's attention, and the Government reserves the right to request change of products at any time, upon giving the contractor 30 calendar days' notice to deplete existing stock.

These cleaning supplies and materials shall be of a quality to conform to applicable Federal, State and Local specifications/regulations and they shall not damage in any way whatever it is applied to (all costs for repairing/correcting damage caused by the contractor shall be borne by the contractor.) The Contractor shall only use trash bags with at least 25% recycled post-consumer content and also be biodegradable material. The contractor is prohibited from using ammonia or ammonia-based products in this facility unless written permission is given by the COR. The contractor shall maintain an on-going inventory of all supplies, dispensers and materials sufficient to service the needs of the facility for a minimum period of two (2) weeks. The Contractor shall leave in stock the same amount of supplies and materials at the end of the contract period. Perfumed soaps, cleaning agents and any other materials that may cause allergic or other reactions shall not be used. Should any materials used by the Contractor cause such a reaction, the Contractor shall immediately take prudent measures to mitigate potential from any further such allergic reactions occurring.

7.6 Biobased Product Reporting

The Contractor shall provide the required Biobased purchasing data using the United States Department of Agriculture (USDA) online reporting tool annually before October 30th. The reporting tool can be found at: <http://www.biopreferred.gov/FARReporting/FARReporting.xhtml>.

The list of Biobased products can be found at:

<http://www.biopreferred.gov/ProductCategories.aspx>

The contractor is responsible to keep current on additional Biobased products designated by the USDA and available for use in the performance of this contract.

Additional information can be found at www.biopreferred.gov.

7.7 Specific Requirements

The Contractor shall provide the custodial services described in the following paragraphs. The Contractor shall submit a plan for COR approval, 30 days after contract award, and annually thereafter, describing the approach and methodology that will be utilized to achieve the cleanliness, serviceability, and appearance standards specified. The plan shall, at a minimum, address personnel, equipment, materials, management techniques, work processes, schedules and quality control. Services as described herein are included in the firm fixed price. Performance requirements are described in the following paragraphs.

7.7.1 Interior Space

See TE-16 & TE-17

7.7.2 Bare Floors

See TE-16 & TE-17

7.7.3 Carpet and Rugs

See TE-16 & TE-17

7.7.4 Floor Mats, Runners, and Umbrella Bags

The Contractor shall furnish all mats, runners and umbrella bags. The COR shall approve all mats and runners. Mats and runners shall be laid out as specified by the COR at main entrances, main lobbies, and/or main and secondary corridors at all times and must have finished edges. Replacement mats and runners shall be of the same type as the original mats and runners. Mats and runners shall be free of removable spots, soiled traffic patterns, dirt, debris, gum, and crusted material. There shall be no areas of deterioration or fuzzing as a result of harsh brushing or scrubbing. They shall receive scheduled cleanings and routine inspections based upon the manufacturer's instructions. Any mats and runners that are found to be non-repairable or cannot be cleaned shall be replaced by the contractor. Mats and runners shall be stored in accordance with the ANSI/ASEE A1264.2-2006 Provision of Slip Resistance on Walking/Working Surfaces Guidelines. The use of larger mats and runners, where appropriate, as opposed to several smaller mats and runners is preferred to eliminate overlapping and to reduce potential tripping hazards. Wet or Inclement Weather: In the event of wet or inclement weather mats and runners are used, the mats and runners shall be placed at entrances and at other areas identified by the COR prior to the building occupants reporting to work. Wet or inclement weather mats and runners shall be removed, cleaned, and stored by the Contractor when the COR determines that they are no longer required.

7.8 Restroom

See TE-16 & TE-17

7.8.1 Restroom Policing

See TE-16 & TE-17

7.8.2 Restroom Minor Maintenance

The contractor shall provide “minor repairs/maintenance” and upkeep in restrooms, areas with sinks/kitchenettes, offices, health unit, childcare, and other COR directed locations. Examples of minor maintenance include installing/replacing “stand alone” soap/hand sanitizer dispensers, paper towel dispensers, body shampoo dispensers, fitness center equipment disinfecting wipes, shower curtains, devices and supplies for providing air freshening, etc.) The restroom “policers” shall report any need for this type of work to their supervisor, who shall in turn have the CMMS administrator create a work ticket to document the repair as a routine ticket and assign the work appropriately.

7.8.3 Restroom Cleaning Schedule

Current center operations require restroom cleaning to be accomplished in accordance with the schedule in TE-16. Restrooms not listed in TE-16 do not have a specific time frame for full or re-fresh cleaning and the Contractor will schedule these to minimize any disruption to IRS employees.

7.8.4 Drinking fountains

See TE-16 & TE-17

7.8.5 Surfaces

See TE-16 & TE-17

7.8.6 Walls

See TE-16 & TE-17

7.8.7 High Cleaning

See TE-16 & TE-17

7.8.8 Trash and Wastebaskets

See TE-16 & TE-17

7.8.9 Recyclables

The Contractor shall provide all labor, equipment and means to collect and transport recyclable materials from areas throughout the building to storage/loading areas as designated by the COR.

7.8.10 Health Unit, Child Care and Fitness Center

See TE-16 & TE-17

7.8.11 Stairways

See TE-16 & TE-17

7.8.12 Plate Glass

See TE-16 & TE-17

7.8.13 Window Washing

See TE-16 & TE-17

7.8.14 Blinds and Coverings (Not including Drapes, Curtains, and Unique Coverings)

See TE-16 & TE-17

7.8.15 Concessions

See TE-16 & TE-17

7.9 Exterior Cleaning

See TE-16 & TE-17

7.9.1 Plate Glass

See TE-16 & TE-17

7.9.2 Window Washing

See TE-16 & TE-17

7.9.3 Canopies

See TE-16 & TE-17

7.9.4 Surfaces (signs, chairs/benches, tables, etc.)

See TE-16 & TE-17

7.9.5 Dock Areas

See TE-16 & TE-17

7.10 Hand Sanitizer Dispensers

Hand sanitizer dispensers are located throughout the facility and the Contractor shall fill the alcohol-based hand sanitizer dispensers as a standard service. The hand sanitizer solution shall comply with CDC's recommendations. Replacement of damaged/broken dispensers shall be the responsibility of the Contractor as part of the firm fixed price.

7.11 Artwork

The mirrored mural wall artwork shall be cleaned per Technical Exhibit 13.

7.12 Ash Receptacles and Trash Containers

All trash shall be collected and removed to a location designated by the COR. Trash containers and ash receptacles shall be emptied and kept clean, odor-free, and free of dirt, dust, ash, cigarette butts, debris, residue, and spilled material. Sand in ash receptacles shall be replenished as necessary. Plastic liners (if applicable) for all trash containers shall not be torn, worn, or contain residue.

7.13 Excrement Removal (Human, avian, rodent, and service animals)

All steps and stairs, entrances, sidewalks, arcades, landings, balconies, and ledges shall be cleaned of all excrement while following established safety precautions as outlined in the Centers of Disease Control and Prevention (CDC) protocols. Knowledge of cautionary requirements in cleaning areas contaminated by bat, pigeon, or other avian pest excrement is required. The Contractor shall fully train all employees designated to perform these services in accordance with OSHA standards such as the Bloodborne Pathogen standard and OSHA approved State plans.

7.14 Service Calls

The Government may transmit service call work orders to the Contractor for Service Calls orally, by email, or through an automated work order generation system, e.g., IRWorks, TRIRIGA, etc. The Contractor shall provide adequate staff to respond to service calls during building operating hours (**see Section 2.3**) AND during the Contractor's regular cleaning schedule. Service call classifications, documentation, response and completion times are described below. The Government reserves the right to make the final determination on all service call classifications. The Contractor shall detail in its Quality Control Plan (QCP) how it will monitor, document, and respond to service calls.

7.14.1 Emergency Service Calls

Emergency service calls involve situations that threaten damage to government property or a safety hazard to personnel. Examples include all types of spills, muddy/wet entrances, overflowing toilets, floods, broken glass or objects, overflowing trash receptacles, animals inside/outside the building, etc. The Contractor shall respond immediately and be on the job site and working within 10 minutes after receipt of an Emergency Service Call. The Contractor shall work continuously without interruption until the request is completed unless advised otherwise by the COR. Work shall be completed within 1 calendar day.

7.14.2 Routine Service Calls

Service Calls will be classified as Routine when the work does not qualify as an Emergency call. Examples of Routine Service Calls include custodial issues, special event support, providing trash carts for office clean ups, etc. The Contractor shall contact the customer reporting the need for service within 30 minutes of receipt of the routine service call. Routine Service Calls shall be completed within 1 calendar day.

7.14.3 Scheduled Routine Service Calls

Routine Service Calls that are scheduled 24 hours or more before the service is needed shall be completed on the requested date and at the specific time it is requested for. The contractor shall contact the customer within 60 minutes to acknowledge receipt of the service request.

7.14.4 Additional Services Requests

Additional Services will be ordered and documented in TRIRIGA as an additional services modification. For complete details on additional services and documentation see section **15** of this PWS.

7.14.5 Service Call Documentation

The Contractor shall maintain the IRS Service CMMS with all relevant information timely entered into the system as described below. The contractor is responsible for receipt of all service calls, creating tickets in the system, printing hard copies of all tickets, and closing tickets out with all pertinent information as outlined in 1 – 8 below. All service calls shall be documented (in accordance with items 1-8 below) and closed-out in the system within 2 workdays of the work being completed by the contractors' custodian (excluding weekends and holidays). The contractors' custodian shall date, and time stamp the completed service call ticket when work has been completed and before the ticket has been officially turned in for closing by the contractor in the TRIRIGA system. All hard copy service call tickets shall be maintained on-site in an orderly filing system approved by the COR for the duration of the contract. The COR shall have access to all service call records for the duration of the contract and all records shall be turned over to the Government 15 days prior to the contract expiration date.

The completed service call tickets shall contain the following information and shall be entered into TRIRIGA:

- 1) Description of service required.
- 2) Date and time service call was created
- 3) Date and time service call was completed.
- 4) Number of Labor Hours.
- 5) Government customer Point of Contact (POC) name and phone number (if different from issued ticket.)
- 6) Name and signature of contractors' custodian that completed the service call.
- 7) Brief description of the work performed by the contractor's custodian.
- 8) Any additional comments.

7.14.6 Enhanced Cleanings

Any Enhanced cleaning or disinfecting the must be conducted will be conducted IAW all CDC guidelines and preformed as an additional service. All Procedures for additional services will be IAW this SOW/PWS as stated in the Additional Services section. See also TE-18 and TE-19. At this time misters and sprayers other than hand squeeze trigger sprayers cannot be used at this time in IRS facilities.

8. PEST CONTROL SERVICES

8.1 General Requirements

The Contractor shall furnish all labor, supervision, equipment, and materials necessary to provide pest control for nuisance (roaches, ants, fire ants, fleas, mites, silverfish, spiders, snakes, mice, rats and wild and stray animals); structural (termites, wood destroying fungi, and powder post beetles for a LEED Gold building. Pest control services described in this section are firm fixed price.

8.2 Specific Requirements

Within 30 calendar days after contract start the Contractor shall submit, for COR approval, an Integrated Pest Management Plan prepared by a certified pest management specialist. The plan shall describe the approach and methodology that will be utilized to achieve pest prevention and suppression in a cost-effective, environmentally sound manner. The plan shall, at a minimum, address personnel, equipment, materials, management techniques, work processes, environmental and regulatory compliance, storage and disposal of hazardous waste, and quality control. Any proposed changes in the plan, including pesticide usage, shall be submitted to the COR 30 days in advance of the change. The plan shall include inspections for subterranean and dry wood termites and powder post beetles within six months of contract award. The plan shall include schedules for each scheduled service for the first two years of the contract. The Contractor shall schedule and arrange work so as to have the least interference with the normal operation of the ANSC. In those cases where some interference may be unavoidable, the Contractor shall make every effort to minimize the impact. The contractor will perform the humane removal of birds, reptiles, bats and other mammals (not commensal rodents) from inside the building or from the surrounding property within the fence line if the animals are nuisances or as requested by the COR. Calls for removal must be answered within 2 hours. The Integrated Pest Management (IPM) Plan is a preventive maintenance process that coordinates many different programs to reduce sources of pest on a long-term basis for both the interior and exterior areas of a building as defined in 7 U.S.C. 136r-1. The custodial Contractor shall employ practices and techniques, as they relate to cleaning, trash, and materials handling, that reduce the sources of food and water, harborage, and access routes used by pests in and around the building. Techniques may include but are not limited to keeping containers closed, removal of debris, etc.

8.3 Environmental, Health and Safety Compliance

The Integrated Pest Management Plan and the work of the Contractor shall be in accordance with federal, state, and local laws and regulations. The Contractor shall be licensed by the Commonwealth of Massachusetts to provide pest control and vegetation control in the categories specified in this contract.

8.3.1 Control Methods

The Contractor shall use only pesticides and herbicides registered by the U. S. environmental Protection Agency, Commonwealth of Massachusetts, Essex County for the use intended. The product manufacturer Safety Data Sheets (SDS) shall be verified against the label information and submitted for COR approval within 30 days after award of the contract for each chemical intended to be used. Any proposed changes in

approved pesticide and herbicide usage shall be submitted to the COR for approval at least five working days in advance of the anticipated need. The Contractor shall maintain the up-to-date SDS for each product used.

8.3.2 Certified Applicator

All work involving the handling and/or use of pesticides and herbicides shall be by a certified applicator, or under the line-of-sight supervision of a certified individual who is in direct communication with the applicator. The certified supervisor shall be always readily accessible for consultation with the COR during pesticide and herbicide operations.

8.3.3 Pesticide and Herbicide Use Records

The Contractor shall maintain daily records of all pesticide and herbicide usage and all entries must be completed within 24 hours of chemical usage. These records shall be forwarded to the COR with the monthly invoice following the month of operation.

8.3.4 Safety

Services which do not adversely affect employee productivity or health shall be performed during normal working hours. Applications and treatments outside normal working hours shall be approved by the COR in writing.

All containers holding pesticides shall be properly labeled with the name and strength of the chemical agent it contains. All copies of the SDS must be in the pest control binders.

The COR shall be notified at least 48 hours in advance of the dates and locations if poisoned baits are to be used. Approved mechanical or electronic devices may be a part of the IPMP with prior written approval of the COR. If used, these devices must be EPA and/or OSHA approved.

Pesticide Application: The Contractor shall not apply any pesticide product that has not been included in the Pest Control Plan or approved in writing by the COR, and shall use only pesticides that comply with the provision of the Federal Environmental Pesticide Control Act of 1972, enacted as P.L. 92-516, and Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) and Federal Facilities <https://www.epa.gov/enforcement/federal-insecticide-fungicide-and-rodenticide-act-fifra-and-federal-facilities> the regulations issued there under.

The Contractor may use approved mechanical or electronic devices integrated with pesticides with concurrence of the COR.

Pesticide application shall be according to need. As a general rule, application of pesticides in any area inside or outside the premises shall not occur unless visual inspections or monitoring devices indicate the presence of pests in that specific area. Preventive pesticide treatments of areas where inspections indicate a potential insect or rodent infestation are acceptable on a case-by-case basis. Ten days prior to the start of contract performance, and annually thereafter, the Contractor shall provide to the COR SDS' for all pesticides used; a

list of technicians who will perform services (list to be updated as/if changes occur); a service schedule; proof of contractor and any subcontractor's business license, insurance, bond, and other requirements of State of MA.

The Contractor is responsible for proper disposal of pesticide, waste, mixing, and storage containers in accordance with EPA, State, County, and local ordinances and codes. In no case shall pesticide waste be poured into the sanitary sewage system. The Contractor shall not store any pesticide product on Government property. Exceptions to this are the sticky traps.

8.3.5 Quality

Performance shall be evaluated on compliance with the Integrated Pest Management Plan; compliance with federal, state, and local laws and regulations; compliance with schedule and timely notification of program and schedule changes; and effectiveness of pest control measures. Pest control effectiveness shall be evaluated by these measures:

- Any occurrence of cockroaches, ants, other arthropods, and rodent infestation shall be eliminated within 30 calendar days and no more than one instance of infestation shall occur in the same location within a 12-month period. The Contractor shall provide a written warranty for each building or building unit treated for subterranean termites or powder post beetles. The warranty shall be valid for at least five years and, during that period, any re-treatment of any subsequent infestation and repair of any structural damage due to an infestation after the initial treatment shall be repaired by the Contractor. The Contractor shall make a detailed written structural assessment with COR concurrence, prior to initial treatment. Any repair, either prior to or after the initial treatment, shall be the Contractor's responsibility, limited to applicable monetary thresholds established in Section 2.7. The Contractor shall guarantee that any fumigated building or building unit is completely free of living dryad termites for one year after the fumigation is completed. A thorough inspection of the structure with the COR shall be made twice, at six-month intervals, following fumigation. The written findings of each inspection shall be provided to the COR after the inspection. Evidence of dryad termite infestation within the one-year period shall be evidence of improper fumigation and the building shall be fumigated again. Control operations for the entire area shall be completed in no more than 24 hours after initiation and complete control shall be obtained within 48 hours of notification.

9. DEFINITIONS AND ACRONYMS

The definitions and acronyms associated with this solicitation are shown at Technical Exhibit TE-8.

10. REGULATIONS AND REFERENCES

The regulations and references associated with this solicitation are shown at Technical Exhibit TE-9.